





OKLAHOMA
Human Services





Licensing Requirements for Family Child Care Homes and Large Child Care Homes

Effective Date 11/1/2024

FOREWORD

Licensing requirements govern child care facilities in the State of Oklahoma. These rules are minimum requirements for the care and protection of children in care outside their own homes. They were developed by Oklahoma Department of Human Services (DHS) Child Care Services with input from individuals from various professions with expertise in child care, including providers; the Child Care Advisory Committee; and the public. The requirements were approved by the DHS Director and the Governor of the State of Oklahoma pursuant to the Oklahoma Administrative Procedures Act.

It is the intent of DHS that licensing requirements are clear, reasonable, fair and enforceable. In the interest of serving the public, comments are welcomed and will be considered for future revisions or development of new requirements. Please complete the form below and send it to:

Oklahoma Department of Human Services
Child Care Services
P.O. Box 25352
Oklahoma City, OK 73125

COMMENTS REGARDING LICENSING REQUIREMENTS

☐ Licensing Requirements for: _____

☐ Reference: *Please give the cite and topic of the specific requirement to which you are referring, such as Section 81, regarding (re.) Definitions.*

- Section _____ re: _____
- Section _____ re: _____

☐ Recommendation:

_____

_____

_____

☐ Reason:

_____

_____

_____

_____ _____

Your Name Date

Return Address: *Oklahoma Department of Human Services*
Child Care Services
P.O. Box 25352
Oklahoma City, OK 73125
FAX (405) 522-2564

TABLE OF CONTENTS

REQUIREMENTS FOR FAMILY CHILD CARE HOMES AND LARGE FAMILY CHILD CARE HOMES (340:110-3-80 through 340:110-3-97.1)

Section 80. Purpose and Policy of the Law **1**

Section 81. Definitions **1**

Section 82. Necessity and issuance of license **3**

(a) **License required** 3
(b) **Application for license** 3
(c) **License issued** 3
(d) **Application denied or license revoked** 3

Section 84. Ages and Number of Children **4**

(a) **Total number of children** 4
(b) **One caregiver** 4
(c) **Two caregivers** 4

Section 85. Caregiver requirements **5**

(a) **Caregiver responsibilities** 5
(b) **Caregiver qualifications** 7
(c) **Background investigations- general** 8
(d) **Background investigations- Restricted Registry** 9
(e) **Background investigations- criminal history** 9
(f) **Prohibited individuals** 11
(g) **Child Abuse and neglect-DHS database** 11
(h) **Professional development requirements** 11

Section 86. Home environment **14**

(a) **Physical conditions** 14
(b) **Water safety** 15
(c) **Animals and household pets** 15
(e) **Overnight care** 16

Section 86.1. Emergency preparedness **17**

(a) **General.** 17
(b) **Emergency medical care plans** 17
(c) **Situations** 17
(d) **Child location and considerations** 17

(e) **Shelter-in-place** 17
(f) **Lock-down** 17
(g) **Evacuation** 17
(h) **Relocation** 18
(i) **Reporting** 18
(j) **Posted emergency information** 18
(k) **First aid supplies** 18
(l) **Poisoning** 18
(m) **Emergency supply kit** 18
(n) **Drills** 19
(o) **Emergency plans and procedures reviews** 19

Section 87. Transportation 20

(a) **Driver qualifications** 20
(b) **Written permission** 20
(c) **Verifications** 20
(d) **Records** 20
(e) **Passenger restraints and seating** 20
(f) **Vehicle requirements** 20
(g) **Supervision and safety** 21

Section 88. Records 22

(a) **General requirements** 22
(b) **Caregiver records** 22
(c) **Children's records** 22
(d) **Public access to records- compliance posting** 22
(e) **Compliance file** 22

Section 89.1. Parent communication 24

(a) **Policy** 24
(b) **Physical and emotional well-being** 24
(c) **Quality child care information** 24
(d) **Home access** 24
(e) **Insurance** 24
(f) **Parent notifications** 24

Section 90. Child Health 25

(a) **Immunizations** 25
(b) **Medication** 25
(c) **Ill children** 25
(d) **Cleanliness** 26

Section 91. Daily Routine and Equipment 27

(a) **Program** 27
(b) **Media use** 27
(c) **Play equipment** 27
(d) **Tables and chairs** 27

Section 91.1. Rest time 28

(a) **Place to rest** 28
(b) **Mats** 28
(c) **Cribs, play yards, and playpens** 28
(d) **Crib, port-a-crib, playpen, and play yard safety features** 28
(e) **Sleep positioning** 28
(f) **Swaddling** 29

Section 92. Discipline and behavior guidance 30

(a) **Positive guidance** 30
(b) **Acts prohibited** 30

Section 93. Infants, toddlers, and two-year-olds 32

(a) **Responding to needs** 32
(b) **Daily routine** 32
(c) **Bottle-feeding** 32
(d) **Chokeable, unsafe, and new foods** 32
(d) **Diaper-changing** 32
(e) **Availability and disposal of diapers** 32
(f) **Toilet learning** 32
(g) **Potty chairs** 33
(h) **Infant car seats** 33

Section 94. Food and Nutrition 34

(a) **Daily requirement** 34
(b) **Snacks** 34
(c) **Food provision** 34
(d) **Encouraging new foods** 34
(e) **Menus** 34
(f) **Water** 34
(g) **Prohibited foods** 34
(h) **Food storage** 34
(i) **Dishes, cups, and eating utensils** 34

Section 97. Fire Safety 35

(a) **General requirements** 35
(b) **Exits** 35
(c) **Doors** 35

(d) **Smoke detectors** 35
(e) **Carbon monoxide detectors** 36
(f) **Fire extinguishers** 36
(g) **Heating equipment** 36
(h) **Electrical services** 36
(i) **Mobile homes** 36

Section 97.1. Requirements for large family child care homes 37

(a) **Large family child care home** 37
(b) **Requirements** 37
(c) **Mobile homes** 37
(d) **Capacity** 37
(e) **Supervision of outdoor play** 37
(f) **Required number of caregivers** 37
(g) **Caregiver qualifications** 37
(h) **Professional development requirements** 38
(i) **Outdoor play** 38

APPENDICES 39

APPENDIX FF. Oklahoma Professional Development Ladder 39
APPENDIX II. Immunizations 41

SUPPLEMENTS 44

SUPPLEMENT I Oklahoma Child Care Facilities Licensing Act 44
SUPPLEMENT II What Is Child Abuse? 67
SUPPLEMENT III Disaster Preparedness 68
SUPPLEMENT IV Child Passenger Restraint System 69
SUPPLEMENT V Injury Report Form - Sample 74
SUPPLEMENT VI Play Equipment - Recommended 75
SUPPLEMENT VII Child Guidance Principles 78
SUPPLEMENT VIII Ages and Stages of Child Development 80
SUPPLEMENT IX Updated Bleach/Water Concentration Information 84
SUPPLEMENT X Safe Food Handling Recommendations 85

Revisions To Requirements 86

PART 5. REQUIREMENTS FOR FAMILY CHILD CARE HOMES AND LARGE FAMILY CHILD CARE HOMES

Section 80. Purpose and policy of the law

It is the declared purpose and policy of the Oklahoma Child Care Facilities Licensing Act to ensure maintenance of minimum standards for the care and protection of children away from their own homes, to encourage and assist the child care facility in attaining maximum standards, and to work for the development of sufficient and adequate services for child care. These requirements are presented as minimum requirements and safeguards to ensure the well-being of children. They have been developed from existing knowledge of child development and experience in child care.

Section 81. Definitions

The following words and terms, when used in this Part, have the following meaning unless the context clearly states otherwise:

"Assistant caregiver" means an individual at least 16 years of age assisting in caring for children.

"Child" means an individual younger than 18 years of age.

"Department" means Oklahoma Human Services (OKDHS).

"Family child care home" means a family home that provides care and supervision for seven or fewer children for part of the 24-hour day.

"Hazard" means anything that may inflict injury or cause harm.

"Inaccessible" means children are unable to access an item or area due to the use of a lock or child-proof barrier or the item is too high for children to easily reach.

"Infant" means a child from birth up to 12 months of age.

"Large family child care home" means a residential family home that provides care and supervision for eight to 12 children for part of the 24-hour day.

"Locked" means the use of a secure device that can only be opened by a key, combination, or code.

"Parent" means an individual legally responsible for the child, such as a mother, father, legal custodian, or legal guardian.

"Primary caregiver" means the caregiver who is present in the child care home and responsible for day-to-day program operation.

"Relative" means an individual with the relationship, whether by marriage, blood, or adoption, of:

(A) parent;
(B) grandparent;
(C) brother;
(D) sister;
(E) step-parent;
(F) step-sister;
(G) step-brother;
(H) uncle;
(I) aunt; or
(J) cousin.

"Specialized service professional" means an individual from an academic discipline or field of expertise providing individualized services to a child, such as behavioral or physical therapists.

"Substitute caregiver" means an individual designated by the primary caregiver to provide substitute child care for short periods of time.

"Toddler" means a child 12 through 23 months of age.

"Unsupervised access to children" means an individual being present with children without personnel present who have a complete criminal history review.

Section 82. Necessity and issuance of license

(a) **License required.** No child care program may be legally operated or maintained in the State of Oklahoma after June 20, 1964, unless licensed by the Oklahoma Department of Human Services (DHS).

(b) **Application for license.** Application for license is made on DHS provided forms and in the manner prescribed.

(c) **License issued.** In order to provide care for children in a child care program, a license is obtained from DHS that is issued on the basis of meeting minimum requirements essential for the health, safety, and well-being of the children in care.

(1) Children are not accepted into care until DHS permission is obtained.

(2) The license granted applies to the ownership and location specified at the time the license is issued. When ownership or location changes, DHS is notified.

(3) The license is not transferable.

(4) Per Section 401 et seq. of Title 10 of the Oklahoma Statutes (10 O.S. § 401 et seq.), Oklahoma Child Care Facilities Licensing Act (Licensing Act), persons identified as registrants on the Restricted Registry are prohibited from:

(A) licensure as a child care program;

(B) ownership of a child care program;

(C) employment in a child care program;

(D) having unsupervised access to children; and/or

(E) residing in a child care facility.

(d) **Application denied or license revoked.** DHS may deny an application or revoke a license if the applicant or licensee violates any provision of the Licensing Act.

(1) No application is denied or license revoked unless the licensee is given a 30 day notice in writing of the grounds for the proposed denial or revocation.

(2) If the denial or revocation is protested within 30 days of receipt of the written notice, a hearing is conducted.

(3) When DHS denies an application or revokes a license, the owner, business entity, or responsible entity cannot make application for a new child care program license within Oklahoma for five years following notification to the the owner, business entity, or responsible entity of the application denial or license revocation; and during the appeal process.

Section 84. Ages and number of children

(a) **Total number of children.** The maximum number of children in care at one time, on or off of the premises, does not exceed the number of children specified on the license.

(1) The total number of children in care is limited to:

(A) seven children, for a family child care home;

(B) twelve children, for a large family child care home; and

(C) includes children in (2) and (3) of this subsection.

(2) The total number of children in care includes:

(A) children younger than 5 years of age living in the home and present while children are in care;

(B) foster children 12 years of age and younger living in the home and present while children are in care; and

(C) the substitute's or assistant caregiver's children present while children are in care.

(3) When the primary caregiver is licensed in an alternative residence other than his or her primary residence, the total number of children in care includes children 12 years of age and younger not residing in the alternative residence.

(b) **One caregiver.**

(1) When only one caregiver is present, the total number and ages of children in care at any one time are:

(A) seven children, with no more than two children younger than 2 years of age;

(B) six children, with no more than three children younger than 2 years of age; or

(C) five children of any age.

(2) Examples of number and ages of children are described in this paragraph.

Total Number of Children in Care	Under 2 Years	2 Years and Older
7	0	7
7	1	6
7	2	5
6	3	3
5	4	1
5	5	0

(c) **Two caregivers.** Two caregivers are required to provide care when:

(1) seven children are in care and more than two children are younger than 2 years of age; or

(2) six children are in care and more than three children are younger than 2 years of age.

(d) Additional staff provisions are made for enrollment of children with disabilities requiring individual attention.

Section 85. Caregiver requirements

(a) **Caregiver responsibilities.** Caregiver responsibilities in (1) through (15) of this subsection are met.

(1) **Primary caregiver.** The primary caregiver is present in the home at least 80 percent of weekly-operating hours and is responsible for the day-to-day program operation. The sole proprietor is the primary caregiver.

(2) **Care and supervision.** The caregiver provides children's care and supervision at all times, both indoors and outdoors.

(A) Caregivers prevent and respond to allergies and life-threatening conditions by:

(i) being aware of children's known food and life-threatening allergies;

(ii) knowing the location of life-threatening condition medications; and

(iii) ensuring life-threatening condition medications, such as epinephrine pens and rescue inhalers, are in close proximity to the child for immediate administration when needed, including outdoors when the child is outside, during transportation, or on field trips. However, medications are inaccessible to children.

(B) Supervision of children means observing, overseeing, and guiding a child or group of children, including:

(i) awareness of, and responsibility for, each child's ongoing activity and, being near enough to intervene when needed;

(ii) observation of infants at least every 15 minutes while awake or sleeping; and

(iii) observation of children 1 year of age and older at least every 15 minutes while in cribs and playpens.

(3) **Outdoor play supervision.** In addition to the requirements in (2) of this subsection, the caregiver remains outdoors with children at all times when:

(A) there is a potentially hazardous situation, such as a pool on the premises or a trampoline in the outdoor play area;

(B) there is access to a dog(s) outdoors;

(C) there are children 3 years of age and younger present; or

(D) the outdoor area is not completely fenced.

(4) **Overnight care supervision.** When children are in care overnight and more than one caregiver is required due to the children's ages and number, at least one caregiver is awake at all times.

(5) **Assistant and substitute caregivers.** When the primary caregiver employs an individual to assist with or provide children's care and supervision in the primary caregiver's absence, the primary caregiver ensures the assistant or substitute caregiver is qualified, understands and complies with requirements, and has current cardio-pulmonary resuscitation (CPR) and first aid certification documentation, per Oklahoma Administrative Code (OAC) 340:110-3-85(h).

(A) **Required records.** Prior to employment, a personnel information form provided by Oklahoma Human Services (OKDHS) is completed. Relative references are not accepted. Assistant and substitute personnel records are maintained at the home and available to Licensing on request.

(B) **Assistant caregiver.** When an assistant caregiver is employed to meet the

required staff to child ratio, the assistant caregiver is a responsible, mature, and healthy individual at least 16 years of age. The caregiver is prohibited from leaving children alone in the care of individuals younger than 18 years of age.

(C) **Substitute caregiver.** A substitute caregiver, at least 18 years of age, is available to provide care for short periods of time in the caregiver's absence.

(i) The substitute caregiver may be used in emergency situations and occasionally in non-emergency situations. In non-emergency situations, the caregiver notifies parents in advance when the substitute will be providing care.

(ii) The substitute's name, address, and phone number are provided to Licensing and posted with the other required emergency numbers.

(6) **Criminal history investigation verification.** The family child care owner or primary caregiver is responsible for submitting to OKDHS Office of Background Investigations (OBI), criminal history investigations and obtaining dispositions on any charges shown on the report lacking dispositions.

(7) **Realistic expectations.** The caregiver demonstrates a capacity for setting realistic behavior and performance expectations based on the children's ages, abilities, and special needs.

(8) **Constructive influence.** The caregiver's family members and others living in the home accept the children in care and provide constructive influence. There is an indication of a stable and harmonious home life.

(9) **Hazards.** The caregiver recognizes and acts to correct hazards to children's safety, both indoors and outdoors.

(10) **Child abuse and human trafficking reporting.** Reporting requirements in (A) and (B) of this paragraph are met.

(A) Any person who has reason to believe a child was abused or neglected, per Section 1-1-105 of Title 10A of the Oklahoma Statutes (10A O.S. § 1-1-105) is required to report the matter promptly to the OKDHS Child Abuse and Neglect Hotline at 1-800-522-3511, per 10A O.S. § 1-2-101. Failure to report is a misdemeanor offense and upon conviction is punishable by law. Failure to report with prolonged knowledge, six months or more, of ongoing abuse or neglect is a felony offense.

(B) Per 21 O.S. § 870, every person having reason to believe that a person or child-placing agency is engaging in the crime of human trafficking in children, per 21 O.S. § 866, reports the matter promptly to the Oklahoma Bureau of Narcotics and Dangerous Drugs Control.

(11) **Licensing Notification.** The primary caregiver notifies Licensing within:

(A) 24-hours of a child death while in care;

(B) 24-hours of accidents involving transportation unless there were no injuries and only minor vehicle damage;

(C) 24-hours of changes in liability insurance coverage;

(D) 24-hours of a phone number change;

(E) 24-hours of an unscheduled temporary or permanent program closure or relocation;

(F) 24-hours of a child's injury requiring emergency medical attention;

(G) 24-hours of an incident exposing children to an imminent risk of harm, such

as a child leaving the premises without caregiver knowledge or being left alone on- or off-site or in a vehicle;

(H) 24-hours of remodeling, changes, or physical facility damage affecting compliance with licensing requirements;

(I) 24-hours of known arrests, criminal investigations, criminal charges, or child abuse investigations involving individuals living in the home, providing care, or assisting with children's care;

(J) 24-hours of any legal action against a caregiver involving or affecting a child in care or program operation;

(K) 24-hours when an animal bites a child and the skin is broken;

(L) 24-hours of any disease or illness requiring prompt local or Oklahoma State Department of Health (OSDH) notification, per OAC 340:110-3-90(c)(2)(A);

(M) five-calendar days of an individual moving into the home; and

(N) 30-calendar days in advance of moving from one residence to another, unless an emergency exists. The new home complies with licensing requirements.

(12) **Heinous and shocking abuse notification.** OKDHS notifies programs of a substantiated finding of heinous and shocking abuse by a person responsible for a child's health, safety, or welfare, as defined per 10A O.S. § 1-1-105. Upon receiving the notice, the facility owner or primary caregiver provides notification to parents or legal guardians of children attending the facility using an OKDHS-provided form.

(A) Notification is:

(i) immediately attempted but not later than 72 hours of notice receipt from OKDHS; and

(ii) provided by certified mail; and

(B) The program maintains the list of notified parents and legal guardians for at least 12 months.

(13) **License posting.** The permit or license is displayed in the home, including the denial or revocation notice, when applicable.

(14) **Other employment.** The caregiver is prohibited from conducting business in the home during the hours children are in care. The primary caregiver is not employed outside the home during child care hours.

(15) **Foster care.** The caregiver may not provide therapeutic foster care. The caregiver may provide foster care only with prior written approval from Licensing for each child placement.

(A) The written approval includes the number and ages of foster children.

(B) Foster children 12 years of age and younger are counted in the license capacity.

(16) **Inactive care.** A primary caregiver is in inactive status when care was not provided for more than 90-consecutive calendar days.

(A) Prior to resuming care, the caregiver notifies Licensing to verify compliance with licensing requirements.

(B) When care was not provided for more than 12-consecutive months, the family child care home is closed. Prior to resuming care, the caregiver must reapply and be approved for a license.

(b) **Caregiver qualifications.** Caregiver qualifications are described in this subsection.

(1) **General.** The caregiver is a responsible, mature, healthy adult capable of understanding and complying with licensing requirements, and meeting children's needs. The caregiver demonstrates prudent and responsible behavior reasonably ensuring children's health, safety, and well-being. Caregivers interact with children without physical, psychological, or emotional punishment, mistreatment, neglect, or abuse.

(A) Primary caregivers are at least 21 years of age.

(B) Primary caregivers applying for a license after October 1, 2007, have obtained a high school diploma or General Educational Development credential (GED).

(C) Caregivers left alone with children have the ability to read and write for keeping required records, reading the licensing requirements, and administering medication.

(D) Caregivers cooperate with Licensing during monitoring visits and OKDHS investigations.

(2) **Primary caregivers licensed or employed before June 1, 2022.** Primary caregivers obtain a current Level 1 or higher Oklahoma Professional Development Ladder (OPDL) certificate, per OAC 340 Appendix FF – Oklahoma Professional Development Ladder, by June 1, 2023.

(3) **Primary caregivers licensed or employed on or after June 1, 2022.** Prior to or within 12 months of licensure or employment, primary caregivers obtain and maintain a current Level 1 or higher OPDL certificate, per OAC 340 Appendix FF – Oklahoma Professional Development Ladder.

(4) **Health.** The requirements relating to the caregiver's, assistant caregiver's, and household members' health in (A) through (C) of this paragraph are met.

(A) **General health.** Caregivers and household members where licensed care is provided are in good physical, mental, and emotional health. When it is reported or observed that a caregiver or household member has a physical, mental, or emotional condition that could negatively impact children's care, a licensed physician's statement is requested.

(B) **Tuberculosis testing.** The need for personnel tuberculin skin testing is based upon a local identified tuberculosis exposure, the degree of transmission risk of latent tuberculosis infection, the impact to public health and safety, and OSDH specific recommendations.

(C) **Immunizations.** There is documentation verifying children living in the home have or are in the process of obtaining the required immunizations at the medically appropriate time, per OAC 340 Appendix II – Immunizations.

(5) **References.** The primary caregiver submits to Licensing the names of three non-relative references that may include a licensed personal or family physician.

(c) **Background investigations - general.**

(1) **Required individuals.** Background investigations are required, per the Oklahoma Child Care Facilities Licensing Act (Licensing Act), 10 O.S. § 404.1, unless an exception, per (3) of this subsection applies for:

(A) owners, prior to authorization to operate;

(B) responsible entities, prior to authorization to operate and, when there is a change in a responsible entity;

(C) personnel applicants, prior to hire; however, the program may hire individuals, when:

(i) the program has submitted a criminal history review request to OBI;

(ii) only awaiting the national criminal history records search, based on fingerprint submission;

(iii) criminal history review results from OBI are received by the program. However, until complete results are received, the individual does not have unsupervised access to children; and

(iv) coming from another licensed program owned by the same business entity. Individuals are not required to repeat the background investigation process, unless required, per (2) of this subsection, with the exception of criminal history restriction waivers, provided there is no break in employment from the business entity; and

(D) individuals with unsupervised access to children, prior to having access to children, unless an exception per (3) of this subsection applies;

(E) adults living in the facility, prior to authorization to operate or moving into the facility of an existing program. This includes children, who become 18 years of age while living in the facility; and

(F) individuals having access to, or review of, fingerprint results, prior to access to or review of results.

(2) **Resubmission of criminal history reviews as of November 2, 2017.** Effective November 2, 2017, programs request a criminal history review process, excluding fingerprinting, for required individuals every five years. However criminal history reviews requested prior to November 2, 2017, are resubmitted by November 1, 2022.

(3) **Non-required individuals.** Background investigations are not required for:

(A) specialized service professionals who are not program personnel, provided parent releases are obtained, per OAC 340:110-3-88(c);

(B) volunteer drivers transporting children on an irregular basis and not filling another position, provided parent releases are obtained, per OAC 340:110-3-88(c);

(C) contracted drivers not filling another position or having unsupervised access to children; and

(D) contracted non-personnel not having unsupervised access to children, such as when the program contracts for special activities or facility repair.

(d) **Background investigations - Restricted Registry.** The program conducts an online search of the Restricted Registry, also known as Joshua's List, when required, per (c) of this Section.

(1) **Non-registrants.** Non-registrants are individuals not recorded on the Restricted Registry.

(2) **Registrants.** Registrants are individuals recorded on the Restricted Registry who are prohibited from licensure, ownership, employment, unsupervised access to children, or facility residence, and prohibited individuals, per (e) of this Section.

(e) **Background investigations – criminal history.** The program and required individuals complete the criminal history review process. The program receives the completed criminal history review results from OBI, when required, per (c) of this

Section.

(1) **Criminal history prohibitions.** Individuals with criminal history prohibitions are prohibited, per (f) of this Section. Criminal history prohibitions include:

(A) required registration under the:

(i) Sex Offenders Registration Act, including state and national repositories; or

(ii) Mary Rippy Violent Crime Offenders Registration Act; or

(B) pleas of guilty or nolo contendere (no contest), or convictions of felonies involving:

(i) murder, as defined in Section 1111 of Title 18 of United States Code;

(ii) child abuse or neglect;

(iii) crimes against children, including child pornography;

(iv) spousal abuse;

(v) crimes involving rape or sexual assault;

(vi) kidnapping;

(vii) arson;

(viii) physical assault or battery; or

(ix) a drug-related offense committed during the preceding five years, unless a criminal history restriction waiver, per (2) of this subsection, is granted; or

(C) pleas of guilty or nolo contendere (no contest), or convictions of violent misdemeanors committed as adults against a child involving:

(i) child abuse or child endangerment; or

(ii) sexual assault; or

(D) pleas of guilty or nolo contendere (no contest), or convictions of misdemeanors involving child pornography.

(2) **Criminal history restrictions.** Individuals with criminal history restrictions are prohibited, per (f) of this Section, unless a criminal history restriction waiver is granted. Criminal history restrictions include pending charges, pleas of guilty or nolo contendere (no contest), or convictions of criminal activity involving:

(A) gross irresponsibility or disregard for the safety of others;

(B) violence against an individual;

(C) sexual misconduct;

(D) child abuse or neglect;

(E) animal cruelty;

(F) illegal drug possession, sale, or distribution; or

(G) a pattern of criminal activity.

(3) **Criminal history restriction waivers.** Restriction waivers are described in (A) through (C) of this paragraph.

(A) Restriction waivers may be requested for individuals having criminal history restrictions. The owner, responsible entity, or primary caregiver completes requests on an OKDHS form.

(B) Restriction waivers are not requested or granted for:

(i) Restricted Registry registrants;

(ii) individuals with criminal history prohibitions; or

(iii) individuals whose sentence has not expired for criminal history restrictions, per (2) of this subsection.

(C) Individuals identified in pending or denied restriction waiver requests are

prohibited, per (f) of this Section.

(f) **Prohibited individuals.**

(1) **Background investigation of required individuals.** The program does not allow a required individual to be the owner or responsible entity, to be employed, to live in the facility, or have:

(A) access to children, such as being present at the facility during the hours of operation or present with the children in care while off-site, when the individual has:

(i) criminal history prohibitions;

(ii) criminal history restrictions, unless a criminal history restriction waiver is granted. Individuals identified in a pending or denied restriction waiver request are prohibited; or

(iii) a substantiated heinous and shocking abuse finding; or

(B) unsupervised access to children, when the individual is a Restricted Registry registrant.

(2) **Background investigation statements and consents.** Individuals are prohibited to be the owner or responsible entity, to be employed, or to live in the facility, when:

(A) the individual refuses to consent to background investigations, per (c) of this Section; or

(B) knowingly makes a materially-false statement in connection with criminal background investigations.

(3) **Child endangerment.** An individual whose health or behavior would endanger children's health, safety, or well-being is not permitted to live in the home or be on the premises when children are in care.

(4) **Alcohol, drugs, and medication.** When children are in care, no caregiver is under the influence of:

(A) alcohol or illegal drugs; or

(B) medication impairing his or her functioning.

(g) **Child abuse and neglect-OKDHS database.** An OKDHS database search is conducted on individuals signing the request for license. A confirmed or substantiated allegation of child abuse or neglect is considered when evaluating the applicant's qualifications and children's safety and well-being.

(h) **Professional development requirements.** Caregiver professional development requirements in (1) through (5) of this subsection are met.

(1) **General.** The primary caregiver is required to complete 12 clock-hours of professional development annually through workshops, training, videos, or individual position-related readings. Only six clock-hours of videos or individual position-related readings are counted annually toward the required 12 clock-hours. Effective June 1, 2023, professional development meets requirements, per (5) of this paragraph.

(2) **CPR and first aid certification.** CPR and first aid requirements in (A) through (C) of this subsection are met.

(A) CPR and first aid are age-appropriate for the children's ages accepted into care and from approved sources listed on the Oklahoma Professional Development Registry (OPDR) website.

(B) Current CPR and first aid certification is required for:

(i) the primary caregiver, prior to permission to operate or initial permit issuance;

(ii) individuals caring for children alone, on or off of the premises, including during transportation; and

(iii) other caregivers, included in the adult-child ratio. CPR and first aid certification is obtained within three months of beginning child care.

(C) CPR and first aid certification is kept current, approved by Licensing, and maintained at the facility.

(3) **Health and safety training.** Prior to caring for children, caregivers obtain professional development in:

(A) the prevention and control of infectious disease and injury prevention measures;

(B) fire extinguisher use;

(C) the prevention of shaken baby syndrome and abusive head trauma;

(D) reducing the risks of sudden infant death syndrome (SIDS) and other sleep-related causes of infant death;

(E) use of infant safe sleep practices;

(F) car seat and transportation precautions and safety;

(G) building and physical premise safety including identification of, and protection from, hazards that can cause bodily injury, such as electrical hazards, bodies of water, or vehicular traffic;

(H) the handling and storage of hazardous materials and appropriate bio-contaminant disposal;

(I) emergency preparedness and response planning for emergencies resulting from a natural disaster or human-caused event addressing continuity of planning and all situations, per OAC 340:110-3-86.1;

(J) immunizations;

(K) medication administration, consistent with standards for parental consent;

(L) the prevention of, and response to, emergencies due to food and allergic reactions;

(M) the definition, identification, and mandatory reporting of child abuse and neglect;

(N) behavior, guidance, and child maltreatment prevention methods; and

(O) child development.

(4) **Safe-sleep training.** Prior to caring for infants, the primary caregiver and individuals caring for infants alone, obtain two or more clock-hours of professional development in safe-sleep practices from an OPDR-approved training organization.

(5) **Continuing professional development effective June 1, 2023.** Ongoing professional development is required.

(A) Primary caregivers obtain at least the required number of professional development clock-hours to maintain a current Level 1 or higher OPDL certificate, per OAC 340 Appendix FF – Oklahoma Professional Development Ladder. However, informal professional development clock-hours are limited.

(B) Formal professional development is:

(i) a course or training event of two or more clock-hours from an OPDR-

approved training organization; and
(ii) OPDR-approved college credit hours.
(C) Informal professional development is:
(i) a course or training event of less than two clock-hours from an OPDR-approved training organization;
(ii) any number of clock-hours from an OPDR non-approved training organization; and
(iii) any training from electronic media, such as videos or DVDs.
(D) Reading and television programs do not count toward required clock-hours.

Section 86. Home environment

(a) **Physical conditions.**

(1) **Licensing accessibility.** All areas of the home are accessible to Licensing.

(2) **Indoor space.** There is minimum indoor space available for children's routine use of not less than 35 square feet per child excluding hallways, bathrooms, kitchen, and space not intended for children's use. Rooms used exclusively for napping are not included in the capacity.

(3) **Maintenance.** The home is in a good state of repair, clean and sanitary, and has operable utilities.

(4) **Phones.** The home has an operable landline or cellular phone.

(5) **Toilet facilities.** The home has:

(A) a sink with comfortably warm or tempered running water not to exceed 120 degrees Fahrenheit;

(B) an operable toilet available for children's use;

(C) soap for hand-washing and individual towels; and

(D) toilet paper within easy reach of children.

(6) **Hazards.** The premises are free of hazards, indoor and out.

(A) All medicines, cleaning products, hazardous items, and tobacco or simulated tobacco materials are inaccessible to children.

(B) The premises are free of illegal drugs and paraphernalia.

(C) Clear glass doors are plainly marked at the child's eye level to avoid accidental impact.

(D) Play equipment and home furnishings accessible to children do not pose tipping hazards.

(E) All stairways with four or more steps have a railing. Indoor stairways are made inaccessible when infants and toddlers are in care.

(7) **Weapons.** All weapons are stored unloaded in a locked container, cabinet, or closet. Ammunition is stored in a locked area separate from weapons.

(8) **Lighting and ventilation.** Rooms used by children are lighted enough to accommodate activities with comfort and allow the caregiver to see children's facial features at all times. Rooms used by children are ventilated.

(9) **Tobacco products.** When children are in care, smoking and simulated tobacco use is prohibited inside the home and in the presence of children. Other tobacco products are not used in the presence of children or in areas designated for children's use. Parents are informed upon enrollment of smoking and simulated tobacco use in the home.

(10) **Indoor temperature.** The indoor areas are maintained between 65 and 80 degrees Fahrenheit.

(11) **Screens.** Opened windows or doors maintain screens to minimize the entry of insects.

(12) **Outdoor play safety.** There is an outdoor play area on the premises with at least 75 square feet per child.

(A) This area must be hazard free, away from traffic, water, and other dangers.

(B) A fence beginning at ground level and in good repair is required. Licensing may grant an exception when children's safety can be ensured.

(13) **Outdoor play**. Children play outdoors daily when weather conditions do not

pose a significant health risk.

(14) **Fire safety.** The home complies with all fire safety requirements, per Oklahoma Administrative Code (OAC) 340:110-3-97.

(15) **Water supply and waste disposal.** Water supply, sewage disposal, and solid waste disposal meet local city ordinances and Oklahoma Department of Environmental Quality regulations.

(16) **Water testing.** When not on a public water supply, water is tested initially and annually for lead, bacteria, and nitrates.

(17) **Questionable conditions.** When the fire, safety, or health conditions are questionable, the appropriate state or local agency is requested to inspect the home.

(b) **Water safety.**

(1) **Supervision.** Any play activity involving water is supervised constantly.

(2) **Accessibility of ponds, pools, and hot tubs.** No ponds, pools, or hot tubs are accessible to children.

(3) **Fencing.** Pools are fenced to prevent unsupervised access. All doors and gates leading to the pool are locked. There is a:

(A) sturdy fence at least four feet high and cannot be easily climbed; or

(B) fence connecting to the top of an above-ground pool and extending two feet above the pool.

(4) **Wading pools.** Portable wading pool use is prohibited.

(5) **Swimming.** Swimming pools used by the child care home are considered public bathing places and must meet water quality, occupancy, and fencing standards, per Design Standards and Operational Criteria for Public Bathing Places, Oklahoma State Department of Health Engineering Bulletin. This includes wading pools, water parks, in-ground pools, and above-ground pools. When children swim in a pool:

(A) the caregiver is at or in the water and appropriately dressed to enter the water at any time;

(B) an individual with a Community Water Safety Certificate or a Licensing-approved comparable certificate is in attendance at all times; and

(C) the adult to child ratio for:

(i) infants and toddlers is one adult to one child. This adult:

(I) is not counted in any other adult-child ratios; and

(II) remains in direct physical contact with infants at all times during swimming or wading; and

(ii) children 2 years of age and older meets requirements, per OAC 340:110-3-84(a) through (d) for family child care homes and OAC 340:110-3-97.1(f) for large family child care homes; and

(iii) four or more children 2 years of age through 3 years of age, requires one additional adult.

(6) **Restrictions.**

(A) Hot tub use by children in care is prohibited. The hot tub must be equipped with a hard cover.

(B) Swimming and wading is not permitted at a lake, pond, or other body of water.

(c) **Animals and household pets.**

(1) Parents are advised of animal presence.

(2) Animals are in good health, do not show evidence of carrying disease, are friendly, and do not pose a health or safety risk.
(3) All contact between animals and children is supervised by a caregiver close enough to remove the child or animal immediately if the animal shows distress signs or the child shows signs of treating the animal inappropriately.
(4) Current rabies vaccination administered by a licensed veterinarian for dogs and cats is documented and maintained on the premises.
(5) Ferrets, turtles, and any wild or dangerous animals are in an area inaccessible to children.
(6) Reptiles, such as crocodiles, alligators, poisonous snakes and lizards, pythons, and boa constrictors, are not on the premises.
(7) Animals are restricted from areas where food is prepared or served and from children's sleeping surfaces.
(8) Animal litter boxes are not located in food preparation areas and are not easily accessible to children in other areas of the home.
(9) Outdoor play areas are cleaned of animal waste before children play outside.
(10) When an animal bites a child and the skin is broken, the child's parent is contacted immediately. Licensing and the local or Oklahoma State Department of Health are notified within 24 hours.

(d) **Overnight care.** Overnight care is only provided by a licensed caregiver at his or her primary residence.

Section 86.1. Emergency preparedness

(a) **General.** All caregivers are familiar with emergency plans and procedures. Written plans and procedures are:

(1) developed by the primary caregiver;

(2) maintained on site;

(3) individualized to the program and operating hours; and

(4) followed, unless children's safety is at risk or emergency personnel provide alternative instructions during an emergency.

(b) **Emergency medical care plans.** Emergency medical care plans include:

(1) a planned source of medical care, such as a hospital emergency room, clinic, or other medical facility or physician acceptable to parents; and

(2) available emergency transportation.

(c) **Situations**. Emergency plans and procedures are maintained in a readily available and portable manner and include procedures for:

(1) serious injuries;

(2) serious illnesses;

(3) poison exposure;

(4) communicable disease outbreaks, including pandemic influenza;

(5) weather conditions, including tornados, floods, blizzards, and ice storms;

(6) fires, including wildfires;

(7) man-made disasters, including chemical and industrial accidents;

(8) human threats, including individuals with threatening behaviors, bomb threats, and terrorist attacks;

(9) lost or abducted children;

(10) other natural or man-made disasters that could create facility structural damage or pose health hazards; and

(11) utility disruption.

(d) **Child location and considerations.** Emergency plans include procedures:

(1) accounting for each child's location during an emergency; and

(2) addressing each child's considerations, with additional considerations for children:

(A) 2 years of age and younger; and

(B) with special needs or chronic medical conditions.

(e) **Shelter-in-place.** Emergency plans include procedures for short and extended stay situations requiring children stay inside the home, such as tornados or other weather emergencies.

(f) **Lock-down.** Emergency plans and procedures for situations threatening children and adults' safety include:

(1) notifying adults present in the home;

(2) keeping children in designated safe locations inside the home;

(3) encouraging children to remain calm and quiet;

(4) securing home entrances;

(5) preventing unauthorized individuals from entering the home; and

(6) responding when outdoors and on field trips.

(g) **Evacuation.** Emergency plans include procedures for situations, such as a fire, requiring children leave the home and meet at pre-determined locations.

(h) **Relocation.** Emergency plans include procedures for situations requiring children move to an alternate location, such as bomb threats and wildfires, and include:

(1) pre-determined primary and secondary alternate locations, with prior approval from the contact individual at alternate locations;

(2) relocating children, including a pre-determined transportation plan; and

(3) reuniting parents and children.

(i) **Reporting.** Emergency plans include procedures for notifying:

(1) emergency authorities, including the poison control center, when necessary;

(2) parents, including a method and backup method for how and when parents are notified; and

(3) Licensing.

(j) **Posted emergency information.** Emergency information posted next to the phone or in a prominent place includes:

(1) the home's address;

(2) a licensed physician or clinic;

(3) the fire department;

(4) the police department;

(5) poison control, 1-800-222-1222; and

(6) a substitute caregiver.

(k) **First aid supplies.** First aid supplies are available but made inaccessible to children. Supplies are stored together in a portable container.

(1) Supplies in the home at least include:

(A) non-glass, non-mercury thermometer;

(B) disposable non-porous, latex-free gloves;

(C) blunt-tipped scissors;

(D) tweezers;

(E) bandage tape;

(F) sterile gauze pads;

(G) rolled flexible or stretch gauze;

(H) non-medicated adhesive strips; and

(I) current first aid guide.

(2) In addition, the first aid supplies in vehicles at least include:

(A) a cold pack;

(B) liquid soap and water or individually packaged moist, disposable towelettes for cleaning wounds;

(C) hand sanitizer and moist disposable towelettes for hand hygiene;

(D) plastic bags for disposal of items contaminated with blood or other body fluids; and

(E) a pen or pencil and note pad.

(l) **Poisoning.** The caregiver immediately contacts poison control, 1-800-222-1222, with any suspected child poisonings.

(m) **Emergency supply kit.** Records and supplies available during an emergency include:

(1) **Emergency records.** Records at least include the:

(A) emergency plans and procedures, alternate location addresses, phone numbers, and contacts;

(B) emergency contacts for all caregivers and enrolled children; and

(C) full names of children and caregivers currently in attendance; and

(2) **Emergency supplies.** Supplies gathered at the time of an emergency or maintained in a portable container at all times at least include:

(A) first aid supplies; and

(B) children's prescribed medications, including life-threatening condition medications.

(n) **Drills.** Drills are conducted, documented, and follow the pre-determined emergency plans and procedures.

(1) **Monthly.** Monthly drills include:

(A) fire drills conducted by evacuating and meeting at pre-determined locations; and

(B) tornado drills conducted by sheltering in pre-determined on-site locations.

(2) **Annual.** Annual drills conducted include:

(A) locking-down by sheltering in pre-determined on-site locations;

(B) relocating according to preparation procedures but physical relocation is not required;

(C) sheltering-in-place, requiring children stay inside the home, such as tornados and other weather emergencies; and

(D) evacuating and meeting at pre-determined locations.

(o) **Emergency plans and procedures reviews.** The primary caregiver updates, when necessary, and reviews emergency plans and procedures:

(1) at least once every 12 months;

(2) when children with special needs or chronic medical conditions enroll;

(3) after a drill when procedural issues are identified; and

(4) after an emergency, as identified in this Section.

Section 87. Transportation

(a) **Driver qualifications.** All drivers must:

(1) be at least 21 years of age;

(2) have an operator's license for the specific vehicle type and valid in the driver's state of residence;

(3) have no conviction of driving under the influence of alcohol or drugs or other impaired driving offense within the last five years; and

(4) when driving a vehicle designed to transport ten or more passengers, complete training specific to the vehicle's safe operation within three months of providing child transportation.

(b) **Written permission.** The primary caregiver maintains written transportation permission from the parent or guardian.

(c) **Verifications.** The vehicle is covered by liability insurance.

(d) **Records.** The driver is provided the names of children being transported and a method to contact children's parents or guardians in case of an emergency.

(e) **Passenger restraints and seating.** Children remain properly secured in a child passenger restraint system, such as car or booster seat or individual seat belt, per Section 11-1112 of Title 47 of the Oklahoma Statutes (47 O.S. § 11-1112). Children do not share a seatbelt.

(1) The car and booster seats are:

(A) federally approved;

(B) installed, per manufacturer's instructions;

(C) appropriate to the child's height, weight, and physical condition, per manufacturer's instructions; and

(D) properly maintained, such as not expired or previously involved in a vehicle accident.

(2) Each seat belt:

(A) is properly anchored to the vehicle; and

(B) fits the child appropriately.

(3) Children 12 years of age and younger are prohibited from sitting in the front seat of an airbag equipped passenger vehicle unless an airbag cut off switch is installed and activated or when the vehicle has airbags equipped with weight sensitive devices. If a child 12 years of age or younger must be placed in front of an air bag, because all other positions are taken, it must be a child whose age and weight requires a forward facing harness seat.

(4) Adult passengers, including the driver, remain properly secured in an individual seat belt unless unable due to medical reasons documented by a licensed physician.

(5) Vehicle maximum capacity and seating space, per manufacturer's designations, is not exceeded.

(6) Children are not transported in vehicles or parts of vehicles not designed for transporting individuals, such as truck bed, campers, and trailers.

(f) **Vehicle requirements.** All vehicles used to transport children are maintained in a safe operating condition and meet all applicable state laws. Vehicles have:

(1) door locks. Vehicle door locks are activated when the vehicle is moving;

(2) a first aid kit, per Oklahoma Administrative Code (OAC) 340:110-3-86.1(k); and

(3) an operable heater maintaining an interior temperature of at least 65 degrees Fahrenheit; and

(4) a ventilation system, such as air conditioning or operable windows.

(g) **Supervision and safety.** Supervision and safety requirements are met.

(1) Children are never left unattended.

(2) Before leaving the vehicle, the caregiver conducts vehicle inspections to ensure no children are remaining.

(3) An operable phone is in each vehicle transporting children.

(4) While transporting children, drivers do not use a phone or wireless communication device, including hands-free technology:

(A) when the vehicle is in motion, with the exception of a navigational system or global positioning system device; and

(B) unless emergency communication is necessary and the vehicle is secured in park before devices are used.

(5) Tobacco or simulated tobacco use is prohibited while transporting children.

(6) Safe conduct to and from vehicles and safe off-street loading space is provided to protect children from:

(A) backing vehicles;

(B) being between vehicles; and

(C) traffic hazards.

Section 88. Records

(a) **General requirements.** Children's records are maintained on Oklahoma Human Services (OKDHS) provided forms or on forms containing the same information. Records are current and easily accessible. OKDHS staff are allowed access to all records.

(b) **Caregiver records.** Primary caregiver, assistant caregiver, and substitute caregiver records are completed and maintained in the home. Records include:

(1) personnel information forms provided by OKDHS and submitted to Licensing within two weeks of employment;

(2) criminal history investigations with records maintained in a confidential manner;

(3) professional development documentation;

(4) caregiver attendance, indicating days and hours worked, maintained on file for 12 months; and

(5) documentation of requests and results of criminal history reviews.

(c) **Children's records.** Children's records are maintained as required in (1) through (3) of this subsection.

(1) Identification and health records include:

(A) the child's name, birth date, parents' names, home addresses, places of employment, and phone numbers;

(B) the names and phone numbers of persons to contact in an emergency when a parent cannot be located promptly;

(C) parent permission authorizing the caregiver to transport the child to emergency medical care;

(D) names and relationships of persons authorized for child pick-up;

(E) health information, including immunization records;

(F) the child's licensed physician's name, address, and phone number;

(G) when applicable, medication and transportation permission; and

(H) the date the child entered care.

(2) When a volunteer driver or specialized service professional does not have a criminal history review, per OAC 340:110-3-85(c), parent releases indicating understanding are signed and dated prior to unsupervised access to children for each volunteer driver or professional.

(3) Daily attendance records, including children's arrival and departure times, are maintained and on file a minimum of 12 months.

(d) **Public access to records - Compliance Posting.** Compliance posting requirements in (1) and (2) of this subsection are met.

(1) OKDHS-provided "Notice to Parents" is posted in a conspicuous location in clear view at the main facility entrance.

(2) Child welfare investigative summary with confirmed or substantiated findings for 120-calendar days from the investigation completion is posted in clear view of the main facility entrance.

(e) **Compliance file.** A compliance file is accessible to personnel, parents, and others. Items are originals or copies and are maintained together, with the most recent on top and all child-identifying information removed. The compliance file includes items within the last 120-calendar days, at a minimum, from the date on the document or the investigation completion date on the form, unless requirements specifically state

otherwise. The compliance file only contains:

(1) compliance monitoring from Licensing, Stars, and tribal agencies, such as;

(A) monitoring visit forms. Include most recent visit; and

(B) case status information, such as forms and correspondence regarding:

(i) issuance of permits and licenses;

(ii) non-compliances and Stars violations;

(iii) notices to comply;

(iv) complaint findings;

(v) office conferences with Licensing, Stars, and tribal agencies;

(vi) Stars alternative settlements and reductions; and

(vii) consent agreements, denials of a request for a license, and revocations of a license; and

(2) child welfare investigative summary, regardless of findings. However, confirmed or substantiated findings are maintained in the file for 12 months;

(3) granted criminal history restriction waiver notifications. However, notification is maintained in the file for as long as the individual is employed or is living in the facility; and

(4) other documents indicating placement in the compliance file.

Section 89.1. Parent communication

(a) **Policy.** The caregiver provides written business policy to parents at least including:

(1) compliance file location;

(2) days and hours of operation, including days closed, such as holidays;

(3) procedure for:

(A) receiving and releasing children, including methods for caller identification authorizing child pick-up and of an individual who picks up a child;

(B) notifying parents when a child does not arrive on his or her own at the facility as scheduled;

(C) handling illness and injuries;

(D) storing and administering children's medication;

(E) field trip notification; and

(F) transporting children;

(4) care of ill children;

(5) mandatory reporting of suspected child abuse and neglect;

(6) behavior and guidance policy;

(7) expulsion policy;

(8) relevant emergency plans and procedures information; and

(9) infant safe sleep environment description.

(b) **Physical and emotional well-being.** The caregiver informs parents of the child's physical and emotional well-being.

(c) **Quality child care information.** Oklahoma Human Services (OKDHS) Publication No. 87-91, The Parents' Guide to Selecting Quality Child Care, is made available to parents upon child's enrollment.

(d) **Home access.** During child care hours, parents are provided access to all areas of the home used for child care.

(e) **Insurance.** A child care facility maintains liability insurance, per Section 404.3 of Title 10 of the Oklahoma Statutes (10 O.S. § 404.3).

(1) When liability insurance is maintained, Form 07LC092E, Insurance Verification, including a certificate of insurance obtained from the insurance agent, is completed annually, maintained at the facility, and made available to Licensing.

(2) When liability insurance is not maintained or the program reports they are self-insured, Form 07LC093E, Insurance Exception Notification, is posted in a conspicuous location in clear view of the main entrance to the facility.

(f) **Parent notifications.** Parents are provided information regarding liability insurance and the compliance file.

(1) Parents complete OKDHS Forms 07LC045E, Insurance Notification, and 07LC046E, Compliance File Notification, every 12 months. Forms are maintained at the facility.

(2) When the child is enrolled, parents are provided copies of OKDHS Forms 07LC093E, Insurance Exception Notification, and 07LC084E Notice to Parents.

Section 90. Child health

(a) **Immunizations.** Per Oklahoma Administrative Code (OAC) 340 Appendix II – Immunizations, an immunization record or exemption is obtained prior to the first day of attendance and is updated when the child receives additional vaccines.

(b) **Medication.** Medication requirements are met.

(1) **Original container.** Medications, including prescriptions and over-the-counter medications, are provided by the parent in the original container and clearly labeled with the child's full name and instructions.

(2) **Diaper creams**. Diaper creams are considered medications.

(3) **Insect repellents and sunscreens.** Insect repellents and sunscreens are not considered medications.

(4) **Parental permission.** Signed parent permission for each medication is obtained prior to administration and includes the exact dosage and times to be administered.

(A) Parent instructions are the same as:

(i) the container instructions; or

(ii) a licensed physician's written statement regarding over-the-counter medication instructions that differ from the container instructions.

(B) For chronic medical conditions, permission may be obtained for 12 months or less at a time, provided specific instructions include when administration is needed, such as diaper cream and inhalers.

(5) **Records.** To avoid duplication, each dosage administered, excluding diaper cream, is immediately documented by the caregiver on an OKDHS or program form containing the same information, and the record is readily available to parents.

(6) **Storage.** All medications are properly stored separately from food and inaccessible to children.

(7) **Medication injections.** When medication is administered by injection, the requirements in this paragraph apply.

(A) Syringes, needles, and lancets are only used one time.

(B) Approved sharps containers are used for any medical waste that is sharp or could cause a cut, puncture, or wound, including syringes, needles, and lancets used to administer insulin or test blood sugar.

(C) When the container is full, disposal arrangements are made with the local pharmacy or health department, licensed physician, or other community organization.

(c) **Ill children.** Health procedures and precautions are required.

(1) **Contagious illness.** Any child showing symptoms of contagious illness is separated from the group.

(2) **Disease control.** The local or Oklahoma State Department of Health (OSDH) is notified, per requirements in (A) through (C) of this paragraph.

(A) **Promptly.** The primary caregiver promptly notifies the local or OSDH of a known case in individuals associated with the family child care home, of:

(i) Measles;

(ii) meningococcal invasive disease; and

(iii) an outbreak of two or more cases within the home of:

(I) COVID-19;

(II) influenza; or

(III) varicella (chicken pox).

(B) **Next business day.** The primary caregiver notifies the local or OSDH by the next health department-business day of a known case in individuals associated with the family child care home, of:

(i) Campylobacteriosis;
(ii) cryptosporidiosis;
(iii) E. coli O157:H7 or Shiga toxin-producing E. coli (STEC);
(iv) Haemophilus influenzae invasive disease;
(v) hepatitis A;
(vi) mumps;
(vii) rubella;
(viii) salmonellosis;
(ix) shigellosis;
(x) tuberculosis; or
(xi) whooping cough (pertussis).

(C) **OSDH guidelines.** The primary caregiver follows all guidelines and recommendations per local or OSDH authorities.

(3) **Parent notification.** Parents are notified as symptoms develop or change.

(4) **Allergy exposure.** The caregiver promptly notifies parents when a child has a suspected allergic reaction, including ingestion of, or contact with, allergens, even when a reaction did not occur.

(5) **Decision to provide care.** The primary caregiver determines whether to provide care for ill children based upon the degree of illness, other children present, and the caregiver's ability to provide care.

(d) **Cleanliness.** Hygiene practices are implemented.

(1) **Handwashing - caregivers.** Caregivers wash hands with soap and running water:

(A) prior to food preparation;
(B) before feeding children or eating;
(C) after diapering or toileting;
(D) after touching or cleaning up body fluids, including wiping noses; and
(E) after handling or feeding pets.

(2) **Handwashing - children.** Caregivers ensure children wash hands with soap and running water:

(A) before eating;
(B) after toileting;
(C) after handling pets;
(D) after playing outdoors; and
(E) after wiping their noses.

(3) **Handwashing supplies.** Soap and clean individual or paper towels are easily accessible to the caregiver and children.

(4) **Children's clothing.** A child's clothing is changed immediately following a toileting accident or when clothing becomes unsanitary. Soiled clothing is placed in a sealed, moisture-proof bag and sent home or laundered.

Section 91. Daily routine and equipment

(a) **Program.** The caregiver provides a balanced program with opportunities for learning, indoor and outdoor play, rest time, and meals.

(b) **Media use.** When used, television, videos, computers, electronic games, cell phones, social media, and other types of media are chosen with discretion, selectivity, and are:

(1) non-violent;
(2) non-vulgar;
(3) non-sexually explicit;
(4) culturally sensitive; and
(5) age-appropriate, according to accepted rating systems.

(c) **Play equipment.** A variety of indoor and outdoor play equipment meeting children's varied developmental needs and interests is readily accessible.

(1) Equipment is available from categories including:
(A) art supplies;
(B) books;
(C) large muscle equipment;
(D) musical equipment;
(E) blocks and accessories;
(F) dramatic play materials;
(G) manipulative toys; and
(H) science materials.

(2) Equipment is maintained in good working condition, and is clean, safe, and free from rough edges, sharp corners, pinch and crush points, splinters, and exposed nails or bolts.

(3) Outdoor equipment, such as swings, slides, and climbing apparatus is not located on a hard surface.

(4) Equipment not designed to be portable is anchored firmly to the ground.

(5) All equipment is placed in a safe location.

(d) **Tables and chairs.** Tables and chairs that ensure children's safety and comfort are provided for meals and snacks.

(e) **Prohibited equipment**. Children in care are prohibited from use of:

(1) infant walkers;
(2) heavy metal or molded plastic swings, such as animal figures;
(3) swinging gates used as play equipment; and
(4) trampolines, except for mini-trampolines or mini-rebounders:
(A) having a diameter of three feet or less, padded handle, and safety pad cover; and
(B) used only by children 3 years of age and older with adult supervision.

Section 91.1. Rest time

(a) **Place to rest.**

(1) Each child has an appropriately sized, individual place to rest, such as a crib, playpen, play yard, bed, cot, or mat, with clean, individual bedding. The place to rest is maintained in a clean, sanitary condition, and in good repair.

(2) Waterbeds, sofas, soft mattresses, inflatable mats, bassinettes, stacked cribs, pillows, beanbag chairs, and other soft surfaces are prohibited as infant sleeping surfaces.

(b) **Mats.** Mats are not used for overnight care. When used for rest time, each mat is at least one-inch thick and covered with a fitted, durable, washable, waterproof material.

(c) **Cribs, play yards, and playpens.** A crib, port-a-crib, play yard, or playpen with a properly-fitted firm waterproof mattress or pad and a tight-fitting sheet is used for each child younger than 1 year of age.

(d) **Crib, port-a-crib, playpen, and play yard safety features and sleep environments.** Infants sleep in appropriate rest equipment and environments described in (1) through (9) of this subsection.

(1) Cribs, including portable cribs that can be folded or collapsed without being disassembled, meet the current Consumer Product Safety Commission (CPSC) full-size and non-full size crib standards, per Sections 1219 and 1220 of Title 16 of the Code of Federal Regulations.

(2) Verification of compliance with CPSC standards is maintained for duration of crib use.

(3) Mattresses are tight-fitting with no more than one inch between the mattress and crib.

(4) Pillows, covers, blankets, quilts, comforters, sheepskins, bumper pads, stuffed toys, and other soft products or bedding, are not permitted inside and on the side of infant rest equipment.

(5) While in rest equipment:

(A) only pacifiers without attachments are used, and pacifiers are not attached to the infant or his or her clothing; and

(B) bibs are not placed around the infant's neck.

(6) Sleep positioners and elevated mattresses are prohibited, unless a medical reason documented by a licensed physician is provided. Documentation is maintained at the child care home.

(7) Play equipment, and other items, except for pacifiers, are not placed inside, above, or attached to the sides of infant rest equipment, unless there is a medical reason documented by a licensed physician for a monitor or other device. Documentation is maintained at the facility. Mobiles may be securely attached or hung above the crib provided no part of the mobile is within the child's reach.

(8) When an infant arrives asleep or falls asleep in inappropriate rest equipment, the infant is immediately moved to appropriate rest equipment.

(9) Infants are protected from overheating by adjusting room temperature and clothing.

(e) **Sleep positioning.**

(1) To reduce the risk of Sudden Infant Death Syndrome (SIDS), infants younger than 12 months of age are placed on their back for sleeping unless a medical reason

is documented by a licensed physician requesting the infant not sleep in this position. Documentation is maintained at the facility.

(2) Infants able to turn themselves over are placed initially on their back for sleeping but allowed to sleep in a position they prefer.

(3) Children's heads and faces are not covered.

(f) **Swaddling**. Infants, birth through three months of age, may be swaddled with an infant-sized, thin fabric, such as a receiving blanket, only when:

(1) the infant is not mobile enough to move the fabric over his or her face; and

(2) requested in writing by the parents. Requests are maintained by the caregiver.

(g) **After resting.** Once children have rested, they are not forced to remain on the rest equipment and are provided quiet activities until rest time is over.

Section 92. Discipline and behavior guidance

(a) **Positive guidance.** Discipline and behavior guidance is developmentally appropriate, responsive to the circumstances, constructive, and provides learning opportunities. The caregiver:

(1) recognizes and encourages acceptable behavior;

(2) teaches by example and uses fair and consistent rules in a relaxed atmosphere with discipline relevant to the child's behavior;

(3) supervises with an attitude of understanding and firmness;

(4) redirects children by stating alternatives when behavior is unacceptable;

(5) when necessary, intervenes as quickly as possible ensuring the safety of all children;

(6) gives clear directions and provides guidance appropriate to the child's development;

(7) speaks so children understand his or her feelings are acceptable but unacceptable action or behavior is not;

(8) encourages children to control his or her own behavior, cooperate with others, and solve problems by talking things out;

(9) uses safe, natural, and logical consequences to address inappropriate behavior; and

(10) uses time-out or time-away when other discipline methods are ineffective.

(A) Caregivers use this method only with children 2 years of age and older when:

(i) necessary for the child to regain self-control;

(ii) the child has the ability to learn from it; and

(iii) appropriate supervision is maintained.

(B) The child may sit quietly or participate in an individual activity.

(C) Time-out is limited to one minute or less for each year of age. However, when self-control is regained in less time, the child may rejoin an ongoing activity.

(b) **Acts prohibited.** The caregiver is prohibited from:

(1) subjecting children to punishment of a physical nature, such as shaking, hitting, striking with an object, spanking, biting, swatting, thumping, pinching, popping, shoving, spatting, yanking, hair pulling, slamming, excessive or forced exercise, or any cruel treatment that may cause pain;

(2) subjecting children to punishment of a psychological nature, such as rejecting, neglecting, or humiliating a child, making derogatory or sarcastic remarks about children or families, or using harsh or profane language, or making actual or implied threats of physical punishment;

(3) punishing or threatening children in association with:

(A) education, such as writing repetitive sentences and homework; and

(B) physical needs, such as:

(i) withdrawing, denying, or forcing food, rest, or toileting; and

(ii) withdrawing or denying outdoor play or a weather alternate activity; and

(4) putting anything in or on a child's mouth as punishment;

(5) exposure to extreme temperatures;

(6) seeking or accepting parental permission to use any punishment or act prohibited, per this subsection;

(7) restraining or tying to restrict a child's movement by any means other than holding. Holding is used only as long as is necessary for the child to regain control;
(8) isolating a child without supervision or placing the child in a dark area;
(9) permitting a child to discipline other children; and
(10) punishing an entire group due to the actions of a few children.

Section 93. Infants, toddlers, and two-year-olds

(a) **Responding to needs.** The caregiver holds, cuddles, talks, and sings to infants and toddlers, while understanding and responding to the child's particular needs.

(b) **Daily routine.** The daily routine is adapted to each infant and toddler's individual needs, accommodating the schedule set by the parent, as much as possible.

(1) The daily schedule is accessible and followed with reasonable regularity.

(2) Awake children do not remain for more than 20 minute increments in equipment restricting freedom of movement, such as rest equipment, swings, high chairs, or stationary activity centers, except while eating in high chairs or similar stationary equipment.

(c) **Bottle-feeding.** Bottles are not propped by any means at any time.

(1) Infants six months of age and younger are held while bottle-fed.

(2) Infants seven months of age and older are held while bottle-fed until able to hold bottles securely without assistance.

(3) Children are not given bottles in cribs or moving swings due to increased risk of choking, ear infections, and tooth decay.

(4) Breast milk is refrigerated or frozen until immediately before feeding.

(5) Bottles of premixed formula are refrigerated until immediately before feeding.

(6) Breast milk is not reused after two hours from serving.

(7) Formula is not reused after one hour from serving.

(8) Bottles of formula or breast milk are not warmed in a microwave.

(d) **Chokeable, unsafe, and new foods.** For safety:

(1) the caregiver works closely with parents to introduce new foods;

(2) infants are not fed honey or peanut butter;

(3) children 1 year of age are fed thinly spread peanut butter, if served; and

(4) children 1 year of age and younger are:

(A) not fed foods that may cause choking, such as candies, gum, marshmallows, raw carrots, raw peas, celery, whole grapes, nuts, seeds, popcorn, rice cakes, and chips; and

(B) fed other foods cut into small pieces no larger than:

(i) 1/4 inch cubes for infants; and

(ii) 1/2 inch cubes for 1-year-olds.

(e) **Diaper-changing.** Diapers are changed promptly when wet or soiled.

(1) A clean nonporous surface or pad is used for diaper changes and sanitized after each use. Care is taken to prevent spread of germs.

(2) Caregivers wash hands thoroughly with soap and warm running water after each diaper change.

(3) Children are not left unattended on a diaper-changing surface.

(f) **Availability and disposal of diapers.** For proper hygiene:

(1) sufficient quantities of clean diapers are available; and

(2) a closed container for soiled diapers is used.

(g) **Toilet learning.** Toilet learning is a relaxed, pleasant activity.

(1) Parents are informed of the child's toilet learning progress.

(2) Training pants or underwear are changed promptly when wet or soiled.

(3) Fecal content may be disposed of in a toilet, but soiled diapers or training pants are not rinsed in the toilet.

(4) Children are encouraged by regular use of a toilet or potty chair for short periods of time not exceeding 10 minutes.

(h) **Potty chairs.** Potty chair contents and rinse water are emptied into the toilet. After each use, potty chairs are cleaned and disinfected in a sanitary manner.

(i) **Infant car seats.** Infants are not permitted in infant car seats except during emergency drills, transportation, and arrival and departure with parents.

Section 94. Food and nutrition

(a) **Daily requirement.** Children, excluding infants, remaining in the family child care home for longer than a four-hour period are served a balanced meal providing at least one-third of the child's total daily nutritive requirement, per current State Department of Education (OSDE) Child and Adult Care Food Program (CACFP) guidelines.

(b) **Snacks.** Snacks are provided mid-morning and mid-afternoon when the interval between regular meals is four hours or longer.

(c) **Food provision.** Food is provided, per (1) and (2) of this subsection.

(1) The caregiver provides food for all children able to eat regular food. The caregiver may require parents to provide food for an infant or child requiring a special diet.

(2) Second servings are available for children.

(d) **Encouraging new foods.** Children are encouraged to try new food but are not forced to eat or punished for not eating.

(e) **Menus.** Weekly menus are planned in advance, readily available, and closely followed, with reasonable substitutions permitted.

(f) **Water.** Water is offered to children at various times throughout the day.

(g) **Prohibited foods.** Foods not served or offered to children are:

(1) home-canned foods; however, parents may provide homemade baby foods;

(2) raw seed sprouts;

(3) prepackaged unpasteurized juices, milk, or juices displaying a warning label;

(4) unpasteurized milk from animals;

(5) raw or undercooked animal foods, such as hamburger, fish, or eggs; or

(6) lightly cooked or uncooked foods containing raw shell eggs, such as meringue, eggnog, ice cream, or egg beverages.

(h) **Food storage.** Food is covered and protected from contamination and spoilage while being obtained, stored, prepared, or served.

(1) All equipment and surfaces are maintained in a clean and sanitary condition.

(2) Refrigerated foods are maintained at 41 degrees Fahrenheit or below. Stored frozen foods are maintained frozen. A thermometer is located in the refrigerator, unless equipped with functioning built-in thermometers.

(3) Chemicals and toxins are not stored in the food storage area.

(4) Dishes washed by hand are sanitized and air-dried.

(i) **Dishes, cups, and eating utensils.** Each child is provided with clean individual dishes, cups, and eating utensils. Disposable items are used only one time.

Section 97. Fire safety

(a) **General requirements.** The primary caregiver ensures compliance with construction and equipment requirements in this subsection. State or local fire officials are consulted as needed.

(1) Any building licensed as a family child care home meets local minimum building codes. In localities where a building code does not exist, construction conforms to current state adopted building code.

(2) If care is provided on the second floor of a multi-family dwelling, the structure meets the life safety code provisions for multi-family occupancies.

(3) Electrical wiring is installed, per state and local codes or ordinances.

(4) All heating and air conditioning equipment is installed, per state and local building codes.

(5) Water heaters are equipped with a pressure-relief valve.

(b) **Exits.**

(1) Each room used for child care has at least two means of escape, and at least one escape is a door leading to an unobstructed path to the outside. The second escape may be an unobstructed, operable window not less than 820 square inches and large enough to allow all adults and children to escape.

(2) Security bars must be hinged with a quick release mechanism inside the home with one motion to operate, or be unlocked during child care hours.

(3) Child care, including naptime, is not provided for children 3 years of age and younger on any floor above ground level.

(4) No story above the second level, excluding basements, is used for child care.

(5) When care is provided on the second level, the second route of escape must be a safe means to ground level.

(6) Space accessible only by a ladder, folding stairs, or through a trap door is not used for child care.

(7) When child care is permitted on the floor below ground level, basement, at least one exit is a door leading directly to the outside at ground level. The second means of escape may be an unobstructed, operable window not less than 820 square inches and large enough to allow all adults and children to escape. Child care is not provided more than one story below the ground.

(8) Every stairway is maintained free of obstructions and provides safe passage.

(9) Stairways within the exits with four or more steps have a railing.

(c) **Doors.**

(1) Each door providing a means of exiting the home opens without a key and is no less than 28 inches wide.

(2) Every closet door latch enables children to open the door from inside the closet.

(3) Every bathroom door lock enables opening of the locked door from the outside with a readily accessible opening device.

(d) **Smoke detectors.**

(1) There is at least one operable smoke detector on each level of the home located at the top of any stairs.

(2) Any room used for children's playing or sleeping, except the kitchen, has a smoke detector.

(3) Smoke detectors are tested monthly, and documentation is maintained.

(e) **Carbon monoxide detectors.**

(1) One operable carbon monoxide detector is installed, per manufacturer instructions, when there is a fuel burning appliance in the home.

(2) Carbon monoxide detectors are tested monthly, and documentation is maintained.

(f) **Fire extinguishers.**

(1) A portable fire extinguisher, Class ABC or BC, with a gauge is readily accessible for the cooking area.

(2) Disposable fire extinguishers with a gauge are acceptable.

(3) Extinguishing devices are UL-approved.

(4) All fire extinguishers are replaced or serviced and tagged by a state licensed authority every three years. Replacement or service is also required when the seal is broken.

(g) **Heating equipment.**

(1) Unvented, ventfree, or open-face heaters are not used while children are in care.

(2) Portable heaters are not used while children are in care, with the exception of electric oil-filled space heating units.

(3) A guard is provided, protecting children from hot surfaces and open flames.

(4) Fireplaces in use while children are in care have solid doors that are kept closed.

(5) A stove or combustion heater is not located where it would prevent escape in case of malfunctioning.

(6) Heating equipment not specifically designed or installed as a normal heating source is not used.

(h) **Electrical services.**

(1) The use of temporary wiring or extension cords as permanent wiring is prohibited.

(2) Electrical outlet covers are used in all areas occupied by children.

(3) Electrical device charging cords are inaccessible to 3-year-olds and younger.

(4) An operable flashlight is available at all times.

(i) **Mobile homes.**

(1) Current compliance documentation with Housing and Urban Development (HUD) standards is required for family child care homes licensed in a mobile home manufactured after June 25, 1976.

(2) The mobile home is anchored and enclosed to ground level with a wind-resistant material.

Section 97.1. Requirements for large family child care homes

(a) **Large family child care home.** A large family child care home is a residential family home providing care and supervision for eight to 12 children for part of the 24 hour day.

(b) **Requirements.** Large family child care homes meet required rules, per Oklahoma Administrative Code (OAC) 340:110-3-81 through 340:110-3-97, except as otherwise provided in this Section.

(c) **Mobile homes.** Prior to caring for children, large family child care homes operated in a mobile home are required to obtain an approved state or local fire inspection.

(d) **Capacity.** Large family child care homes are required to meet the rules, per OAC 340:110-3-84(a), and the total number of children in care in a large family child care home is limited to 12.

(e) **Supervision of outdoor play.** Large family child care homes meet the rules in OAC 340:110-3-85(a)(3) pertaining to outdoor play supervision, except when two or more personnel are needed to meet the required adult-child ratio. At least one personnel is present with children outdoors at all times.

(f) **Required number of caregivers.** Large family child care homes are exempt from the requirements regarding the number of caregivers, per OAC 340:110-3-84(b) and (c). The number of caregivers required in a large family child care home is described in this subsection.

(1) **One caregiver.** One caregiver may care for up to:

(A) five children of any age;

(B) six children, with no more than three children younger than 2 years of age;

(C) seven children, with no more than two children younger than 2 years of age;

(D) seven children, when the children are 2 years of age and older;

(E) eight children, when the children are 3 years of age and older;

(F) 10 children, when the children are 4 years of age and older; or

(G) 12 children, when the children are 5 years of age and older.

(2) **Two caregivers.** Two caregivers may care for up to:

(A) eight children younger than 2 years of age; or

(B) 12 children, with no more than six children younger than 2 years of age.

(3) **Three caregivers.** Three caregivers may care for up to 12 children of mixed ages, with no more than eight children younger than 2 years of age. When only children younger than 2 years of age are in care, three caregivers may care for up to 12 children.

(g) **Caregiver qualifications.** Primary, assistant, and substitute caregivers at large family child care homes are required to meet qualifications, per OAC 340:110-3-85(a) and (b), except as otherwise described in (1) through (3) of this subsection.

(1) **Primary caregiver.** The primary caregiver or individuals substituting for the primary caregiver are at least 21 years of age. For individuals applying after October 1, 2007, the primary caregiver has:

(A) six months of satisfactory experience as the primary caregiver in a licensed family child care home in Oklahoma;

(B) a high school diploma or General Educational Development (GED) credential; and

(C) a current Level 4 or higher Oklahoma Professional Development Ladder (OPDL) certificate, per OAC 340 Appendix FF – Oklahoma Professional Development Ladder.

(2) **Assistant caregiver.** The assistant caregiver or individuals substituting for the assistant caregiver meet requirements in (A) through (C) of this paragraph.

(A) Caregivers are at least 16 years of age. Children are not left alone in the care of any individual younger than 21 years of age.

(B) Caregivers have current cardio-pulmonary resuscitation (CPR) and first aid certification documentation, per OAC 340:110-3-85(h).

(C) Assistant caregivers obtain and maintain a current Level 1 or higher OPDL certificate, per OAC 340 Appendix FF – Oklahoma Professional Development Ladder, prior to or within 12 months of employment.

(3) **Substitute caregiver.** Individuals substituting for the primary caregiver are at least 21 years of age and have current CPR and first aid certification documentation, per OAC 340:110-3-85(h).

(h) **Professional development requirements.** The primary caregiver and assistant caregiver at large family child care homes are required to meet the professional development requirements, per OAC 340:110-3-85(h), except as otherwise described in (1) and (2) of this subsection.

(1) The primary caregiver:

(A) completes and documents all health and safety training, per OAC 340:110-3-85(h)(3), within two years prior to request for license;

(B) registers the program as a direct care organization and maintains information on the Oklahoma Professional Development Registry (OPDR); and

(C) completes 20-clock hours of professional development annually.

(2) The assistant caregiver meets professional development requirements in (A) through (D) of this paragraph.

(A) The assistant caregiver completes 12-clock hours of professional development annually.

(B) Formal professional development is:

(i) a course or training event of two or more clock-hours from an OPDR-approved training organization; or

(ii) OPDR-approved college credit hours.

(C) Informal professional development clock-hours are limited. Informal professional development is:

(i) a course or training event of less than two clock-hours from an OPDR-approved training organization;

(ii) any number of clock-hours from an OPDR non-approved training organization; or

(iii) any training from electronic media, such as videos or DVDs.

(D) Reading and television programs do not count toward required clock-hours.

(i) **Outdoor play space.** The requirements regarding outdoor play space, per OAC 340:110-3-86(a)(12), are met. The outdoor play space is enclosed by a building or a fence beginning at ground level, at least four feet high, and in good repair. Fencing exceptions are not granted by Licensing.

APPENDIX FF. OKLAHOMA PROFESSIONAL DEVELOPMENT LADDER

Level	Level Requirements	Annual Renewal Clock Hours
11	BA/BS[1, 2] or above in Early Childhood Education (ECE)/ Child Development (CD)/School-Age (SA) –or– BA/BS in another field (BA/BS-non) with 24 ECE/CD/SA credit hours[2]	20 hours[3]
10	90 credit hours with 18 ECE/CD/SA credit hours[2] –or– BA/BS-non with 18 ECE/CD/SA credit hours[2]	20 hours[3]
9	AA/AS[2,4] in ECE/CD/SA –or– BA/BS-non with 15 ECE/CD/SA credit hours[2]	20 hours[3]
8	AA/AS-non with 15 ECE/CD/SA credit hours[2] –or– 60 credit hours with 15 ECE/CD/SA credit hours[2] –or– BA/BS-non with 6 ECE/CD/SA credit hours[2]	20 hours[3]
7	30 credit hours with 15 ECE/CD/SA credit hours[2]	20 hours[3]
6	Oklahoma Certificate of Mastery (ECE/CD)[5] –or– Tulsa Community College School-Age Certificate of Mastery	20 hours[3]
5	Current Child Development Associate (CDA) or Certified Childcare Professional (CCP) Credential –or– 12 credit hours[2] in ECE/CD/SA	20 hours[3]
4	Oklahoma Competency Certificate (Career Tech Master Teacher or Career Tech Director ONLY)[6]	20 hours[3]
3	6 credit hours[2] in ECE/CD/SA	20 hours[3]
2	3 credit hours[2] in ECE/CD/SA –or– 60 clock hours of Oklahoma Professional Development Registry Approved[7] ECE/CD/SA training in the past 5 years	20 hours[3]
1	12 clock hours of ECE/CD/SA training[3] in the past 12 months	12 hours[3]

Footnotes

1. Bachelor Degree of Arts, Bachelor Degree of Science.

2. College credit hours must be on the Recommended Approved Coursework List (www.cecpd.org) and articulate to a two- or four-year college or university.

3. **No more than 6 hours of informal professional development are counted toward both initial and renewal hours.** Training in the core content areas identified in "Oklahoma Core Competencies for Early Childhood Practitioners." 1) child growth and development; 2) health, safety and nutrition; 3) child observation and assessment; 4) family and community partnerships; 5) learning environments and curriculum; 6) interactions with children; 7) program planning, development and evaluation; and/or 8) professionalism and leadership.

4. Associate Degree of Arts, Associate Degree of Science.

5. The Certificate of Mastery in child development or early childhood education is a minimum 18 credit hour certificate awarded by an Oklahoma community college.

6. Master Teacher or Director Competency Certificate only awarded by Oklahoma Department of Career Technology.

7. Training approved through the Oklahoma Professional Development Registry (OPDR) (www.cecpd.org). All OPDR approved training is tied to the "Oklahoma Core Competencies for Early Childhood Practitioners."

   NOTE: Informal professional development is not counted toward meeting this requirement.

   Entry Level Child Care Training (ELCCT), Family Child Care Home Entry Level Training (FHELT), Director's Entry Level Training (DELT), and Out-of-School Time Entry Level Training (OST-ELT) can only be counted one time toward renewal hours.

APPENDIX II. IMMUNIZATIONS

Law
The Oklahoma Child Care Facilities Licensing Act, Section 411 of Title 10 of the Oklahoma Statutes (10 O.S. § 411) mandates children attending child care obtain, at the medically appropriate time, the Required Immunization Schedule vaccines.

Law Exemptions
Exemptions from the law are allowed for medical, religious, and personal reasons. Summaries are below, including procedures for obtaining exemptions and exclusions.

Medical. For exemptions based on medical reasons, Oklahoma State Department of Health (OSDH) Form ODH 216A, Certificate of Exemption, must be signed by a licensed physician and state the child's physical condition is such that a particular immunization would endanger the child's life or health. The parent is responsible for obtaining the signature of the licensed physician.

Religious. For exemptions based on religious reasons, an ODH 216A must be signed by a parent or religious leader or a written statement signed by a parent or religious leader may be attached to the Certificate of Exemption.

Personal. For exemptions based on personal beliefs, an ODH 216A must be signed by a parent and include a brief written statement summarizing his or her objections to immunizations.

Exemption Procedures. Programs willing to enroll an unimmunized child based on an exemption obtain Form ODH 216A from the OSDH Immunization Service, at Vaccines for School (oklahoma.gov). Parents complete the form, obtain the required signatures, and return it to the program. Programs review the form for proper completion and signatures, maintain a copy in place of an immunization record, and submit a copy to the OSDH Immunization Service for approval.

Exclusion of exempt children during outbreaks. If there is an outbreak of a vaccine-preventable disease, programs may be required to exclude unimmunized children based on exemptions or family emergencies. The exclusion may be a lengthy period of time. The Commissioner of Health makes this decision and the program would be contacted by a representative of OSDH. The program is responsible for informing the parent of this possibility at the time the Certificate of Exemption is accepted by the program.

Thirty-day exemptions. A program may allow a child to enter and remain for up to 30-calendar days, without an immunization record. In addition, the Federal Child Care and Development Fund requires a 30-calendar day exemption to provide immunization records for foster children and homeless families. The record must be provided at the earliest possible opportunity. If at the end of 30-calendar days an up-to-date record has not been provided, the program must exclude the child. No child may receive this waiver more than once.

Required Immunization Schedule

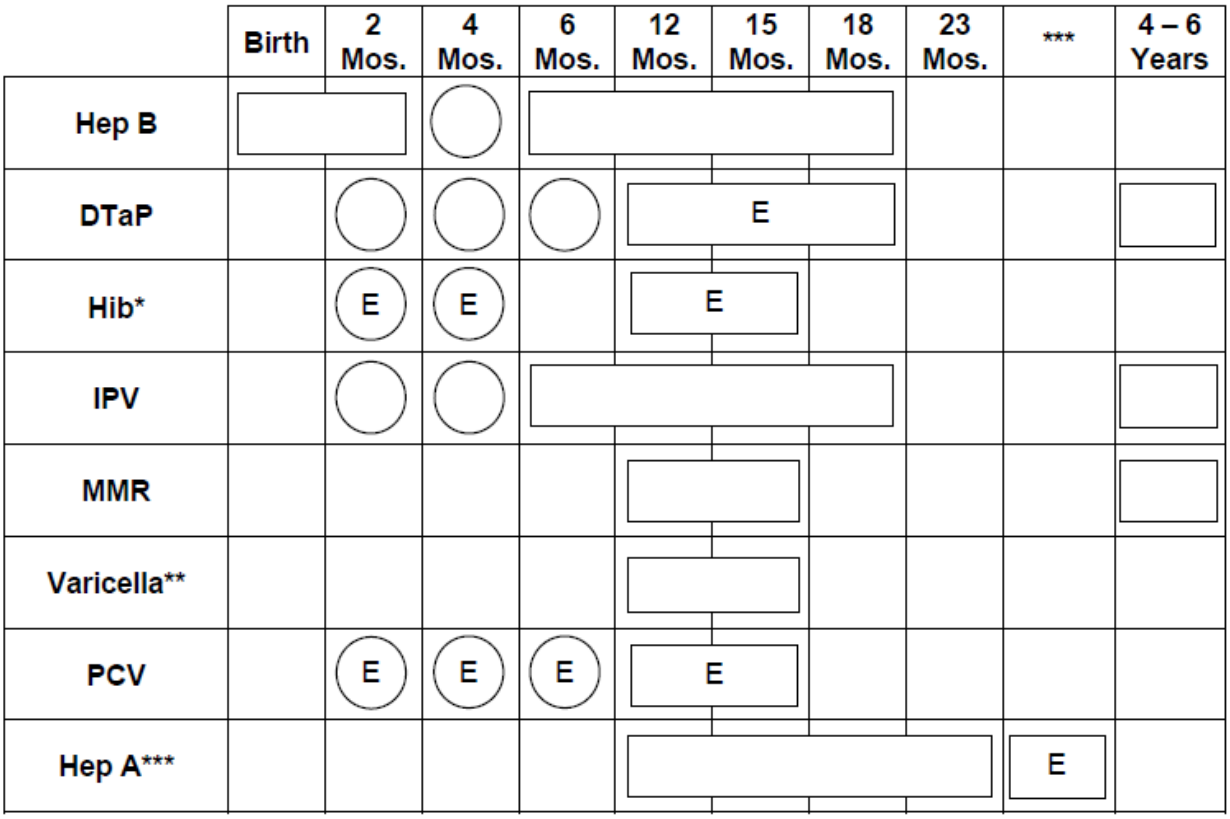
Due Immunizations are due according to this Required Immunization Schedule, unless there are late dose revisions (see next page).

○ Dose due that month

□ Dose due at the end of the age range, but may be given anytime during the age range.

E = Late Does Exceptions (see next page)

Past Due Immunizations are past due the month following the age due.



*** Hib** may be complete with three or four doses depending on the vaccine brand used
**** Varicella** vaccine is not required, if a parent or treating medical physician statement states the child had Chickenpox
***** Hep A dose 2** is due six to 18 months after dose one

Refer to the OSDH website for the immunization schedule for children seven years of age and older, who need to catch-up or start immunizations.

Late Doses = Revised Due Dates

When a dose is received late, the remaining doses may have a different due date than shown on the Required Immunization Schedule.

All remaining doses are due one to two months after the previous dose, unless:

- the schedule allows more time; or
- if one of these exceptions (E) apply.
  DTaP dose 4 is due six to 12 months after dose three
  Hep A dose 2 is due six to 18 months after dose one

Late Doses = Revised Number of Doses

When a dose is received late, usually the same number of doses is required. However, fewer doses may be required once a child reaches a certain age if one of these exceptions (E) applies.

Hib

- If one dose is given at 15 months of age or older, regardless of the number of previous doses received, no more doses are required.
- If a child is 5 years of age or older, no doses are required.

PCV

- If two doses are given at 12 months of age or older, regardless of the number of previous doses received, no more doses are required.
- If one dose is given at 24 months of age or older, regardless of previous doses received, no more doses are required.
- If a child is 5 years of age or older, no doses are required.

Vaccine Names and Combination Vaccines

Use this chart to determine what vaccines have been received. Combination vaccines have two or more vaccines in one shot.

Vaccine	Disease	Vaccine Brand Names and Abbreviations
Hep B	Hepatitis B	Comvax, HBV, Hep B Pediatric, Engerix-B, Pediarix, Recombivax, Vaxelis
DTaP	Diphtheria, Tetanus, & Pertussis (Whooping Cough)	Daptacel, DT, DTP, Infanrix, Kinrix, Pediarix, Pentacel, TriHIBit, Vaxelis
Hib	Haemophilus Influenzae Type B	ActHIB (PRP-T), Comvax, HbCV, HbOC, Hib conjugate, Hiberix, Pedvax HIB (PRP-OMP), Pentacel, TriHIBit, Vaxelis
IPV	Polio	Kinrix, OPV, Pediarix, Pentacel, Vaxelis
MMR	Measles, Mumps, & Rubella	M-M-R II, MMRV, ProQuad
Varicella	Chickenpox	MMRV, ProQuad, VAR, Varivax
PCV	Pneumococcal	PCV 7 or 13, Pneumococcal Conjugate, Prevnar
Hep A	Hepatitis A	HAV, Havrix, Vaqta

SUPPLEMENT I

OKLAHOMA CHILD CARE FACILITIES LICENSING ACT

Sections 401 through 425 of Title 10 of the Oklahoma Statutes
(Amended with 2023 legislation)

Section 401- Purpose and Policy- Minimum Standards

A. Sections 401 through 418 of this title shall be known and may be cited as the "Oklahoma Child Care Facilities Licensing Act".
B. It is the declared purpose and policy of the Oklahoma Child Care Facilities Licensing Act, to:

1. Ensure maintenance of minimum standards for the care and protection of children away from their own homes;
2. Encourage and assist the child care facility toward maximum standards; and
3. Work for the development of sufficient and adequate services for child care through joint work of public, private and voluntary agencies. Whenever possible, child care facilities should help to preserve and restore family life for children.

C. In order to provide care for children in child care facilities, a license shall be obtained from the Department of Human Services, which is issued on the basis of meeting minimum standards which are essential for the health and welfare of the child or children placed for care with such agencies and individuals.
D. The Child Care Facilities Licensing Division within the Department of Human Services shall work with representatives from municipalities to develop a single child care licensure procedure for use by state and local entities.

Section 402- Definitions

As used in the Oklahoma Child Care Facilities Licensing Act:

1. "Adult" means an individual eighteen (18) years of age or older;
2. "Child" or "minor" means any person who has not attained the age of eighteen (18) years;
3. "Child care center" means a program that operates thirty (30) or more hours per week;
4. "Child care facility" means any public or private child care residential facility, child-placing agency, foster family home, child care center, part-day program, out-of-school time program, day camp, drop-in program, program for sick children, family child care home, or large family child care home providing either full-time or part-time care for children away from their own homes;
5. "Child-placing agency" means an agency that arranges for or places a child in a foster family home, adoptive home, or independent living program;
6. "Foster family home" means the private residence of a family which provides foster care services to a child, and includes a specialized foster home, a therapeutic foster family home, or a kinship care home;
7. "Foster parent eligibility assessment" includes a criminal background investigation, including, but not limited to, a national criminal history records search based upon the submission of fingerprints, a home assessment, and any other assessment required by the Department of Human Services, the Office of

Juvenile Affairs, or any child-placing agency pursuant to the provisions of Section 1-7-106 of Title 10A of the Oklahoma Statutes. A foster parent eligibility assessment shall be similar to the procedures used by the Department of Public Safety for determining suitability of an individual for employment as a highway patrol officer;

8. "Department" means the Department of Human Services;

9. "Division" means the section within the Department that is assigned responsibilities pursuant to the provisions of the Oklahoma Child Care Facilities Licensing Act;

10. "Family child care home" means a family home which provides care and supervision for seven or fewer children for part of the twenty-four-hour day. The term "family child care home" shall not include informal arrangements which parents make independently with neighbors, friends, and others, or with caretakers in the child's own home;

11. "Full-time care" means continuous care given to a child beyond a minimum period of twenty-four (24) hours;

12. "Large family child care home" means a residential family home which provides care and supervision for eight to twelve children for part of the twenty-four-hour day;

13. "Part-day child care program" means a program that provides care and supervision for children and that operates for more than fifteen (15) and up to thirty (30) hours per week;

14. "Program" means the business entity that provides care, supervision, and learning opportunities for children;

15. "Rap back" means a notification from the Oklahoma State Bureau of Investigation to the Department of subsequent criminal activity of individuals whose criminal background checks have been completed pursuant to the requirements of the Oklahoma Child Care Facilities Licensing Act;

16. "Residential child care facility" means a twenty-four-hour residential facility where children live together with or are supervised by adults who are not their parents or relatives;

17. "Responsible entity" means an individual who is authorized to obligate the business; and

18. "Specialized service professional" means an individual from an academic discipline or field of expertise who provides individualized services to a child, such as behavioral or physical therapists.

Section 403- Exemptions

A. The provisions of the Oklahoma Child Care Facilities Licensing Act shall not apply to:

1. Care provided in a child’s own home or by relatives;

2. Informal arrangements which parents make with friends or neighbors for the occasional care of their children;

3. Care provided by an attorney-in-fact authorized by Section 700 of this title who exercises parental or legal authority on a continuous basis for not less than twenty-four (24) hours and without compensation for the intended duration of the power of attorney;

4. Programs in which school-aged children three (3) years of age and older are participating in home-schooling;
5. Programs that serve children three (3) years of age and older and that are operated during typical school hours by a public school district;
6. Programs that serve children three (3) years of age and older and that are operated during typical school hours by a private school that offers elementary education in grades kindergarten through third grade;
7. Summer youth camps, summer programs or after-school programs for children who are at least four (4) years of age, that are accredited by a national standard-setting agency or church camp accreditation program, or are accredited by, chartered by or affiliated with a national non-profit organization;
8. Programs in which children attend on a drop-in basis and parents are on the premises and readily accessible;
9. A program of specialized activity or instruction for children that is not designed or intended for child care purposes including, but not limited to, scouts, 4-H clubs and summer resident youth camps, programs that limit children from enrolling in multiple sessions because of the type of activity or ages accepted and single-activity programs such as academics, athletics, gymnastics, hobbies, art, music, dance and craft instruction;
10. Any child care facility that:
    a. provides care and supervision for fifteen (15) or fewer hours per week,
    b. operates less than ten (10) weeks annually,
    c. operates in the summer for less than eight (8) hours per day, or
    d. provides care and supervision for school-aged children only in a center-based program for twenty-one (21) or fewer hours a week and is located in a county with a population of less than one hundred thousand (100,000) according to the latest Federal Decennial Census;
11. Facilities whose primary purpose is medical treatment;
12. Boarding schools that have education as their primary purpose and that are recognized as accredited by the State Board of Education. To be exempt, such programs shall:
    a. have classroom facilities that are not used for residential living,
    b. not have been granted nor have assumed legal custody of any child attending the facility, and
    c. adhere to standard educational holiday and seasonal recess periods to permit students reasonable opportunities to return to their primary places of residence with parents or legal guardians;
13. Day treatment programs and maternity homes operated by a licensed hospital;
14. Juvenile facilities certified by the Office of Juvenile Affairs or certified by any other state agency authorized by law to license such facilities;
15. A program where children are not enrolled by the parents and are free to come and go;
16. A program in tribal land as defined at 25 U.S.C.A. 1903 (10); and
17. A program on a military base or federal property, or a facility licensed as a family child care provider by a branch of the United States Department of Defense or by the United States Coast Guard.

B. The provisions of the Oklahoma Child Care Facilities Licensing Act shall be equally incumbent upon all private and public child care facilities.

Section 404- Minimum Requirements and Desirable Standards

A. 1. The Department of Human Services, in consultation with the Oklahoma Commission on Children and Youth, shall appoint advisory committees of representatives of child care facilities and others to recommend minimum requirements and desirable standards for promulgation by the Department.

2. Committee members shall be appointed for a three-year term, with a two-consecutive-term limit. The committees shall include representation for all categories of facilities licensed by the Department and shall be comprised as follows:

a. the Residential Children's Services subcommittee shall include at a minimum:

(1) a representative of a statewide organization representing children in care arrangements outside their own home,

(2) a representative of a statewide organization providing residential services to youth in state custody,

(3) a recipient or former recipient of youth services for children in state custody,

(4) a representative of a statewide organization promoting adoption services,

(5) a parent or guardian providing foster care to a child or children in state custody,

(6) a representative from a nonpublic, long-term residential care facility for children in state custody,

(7) a representative from an organization promoting the interests of Native American children in state custody,

(8) a provider of medical services for children,

(9) a practicing behavioral health services provider,

(10) a representative from an agency providing child-placing services, and

(11) other appropriate representatives at the discretion of the Department of Human Services and Commission on Children and Youth,

b. the Child Care Centers subcommittee shall include at a minimum:

(1) a representative of a statewide organization advocating for children in care arrangements outside their own home,

(2) a representative of a statewide organization conducting programs for school-age children,

(3) a parent or guardian with a child attending a licensed child care facility,

(4) a representative of a licensed child care facility in a rural area,

(5) a representative of a statewide organization advocating for licensed child care facilities owned or operated by Native Americans,

(6) a representative of a licensed child care facility in an urban/suburban area,
(7) a representative of a statewide organization advocating for programs provided under the Head Start program,
(8) a representative with knowledge of child care programs offered by career technology center in this state,
(9) a representative of a statewide organization advocating for early childhood education programs,
(10) a representative of a statewide organization providing resources and referrals to child care facilities,
(11) a provider of medical services for children, and
(12) other appropriate representatives at the discretion of the Department of Human Services and Commission on Children and Youth,

c. the Child Care Homes subcommittee shall include at a minimum:
(1) a representative of a statewide organization advocating for children in care arrangements outside their own home,
(2) a parent or guardian with a child receiving care at a licensed child care home,
(3) a representative of a licensed child care home in a rural area,
(4) a representative of a statewide organization advocating for licensed child care facilities owned or operated by Native Americans,
(5) a representative of a licensed child care home in an urban/suburban area,
(6) a representative of a statewide organization advocating for early childhood education programs,
(7) a representative of a statewide organization providing resources and referrals to child care facilities,
(8) a provider of medical services for children, and
(9) other appropriate representatives at the discretion of the Department of Human Services and Commission on Children and Youth, and

d. the Quality Rating and Improvement System subcommittee shall include representatives of child care centers and child care homes currently licensed by the State and other members as determined by the Department of Human Services and the Commission on Children and Youth.

3. The Department shall create a Child Care Facility Peer Review Board whose purpose shall be to participate in the Department's grievance process. A majority of the Board shall be representatives of child care facilities. The Department shall promulgate rules specifying the duties of the Child Care Facility Peer Review Board in the grievance process.

4. The advisory committee shall designate two people to serve on the Department's Stars Administrative Review Panel. At least one designee shall be the owner or operator of a licensed child care center.

B. Child care facilities shall not allow children to be left alone in the care of any person under eighteen (18) years of age without supervision or sixteen (16) years of age with supervision as delineated by the Department's rules. Child care centers and family child care homes shall not:

1. Use soft or loose bedding, including, but not limited to, blankets, in sleeping equipment or in sleeping areas used only for infants;
2. Allow toys or educational devices in sleeping equipment or in a sleeping area used only for infants; or
3. Place a child in sleeping equipment or in a sleeping area which has not been previously approved for use as such by the Department.

C. The Department shall promulgate rules establishing minimum requirements and desirable standards as may be deemed necessary or advisable to carry out the provisions of the Oklahoma Child Care Facilities Licensing Act.

D. Such rules shall not be promulgated until after consultation with the State Department of Health, the State Department of Education, the Oklahoma State Bureau of Investigation, the State Fire Marshal, the Commission on Children and Youth, the Oklahoma Department of Mental Health and Substance Abuse Services and any other agency deemed necessary by the Department. Not less than sixty (60) days' notice, by regular mail, shall be given to all current licensees before any changes are made in such rules.

E. In order to improve the standards of child care, the Department shall advise and cooperate with licensees, the governing bodies and staff of licensed child care facilities and assist the staff through advice of progressive methods and procedures, and suggestions for the improvement of services.

F. The Department may participate in federal programs for child care services, and enter into agreements or plans on behalf of the state for that purpose, in accordance with federal laws and regulations.

Section 404.1- Criminal History Records Search and Child Care Restricted Registry for Individual Applying to Establish or Operate Child Care Facility

A. On and after November 1, 2013:

1. Prior to the issuance of a permit or license, owners and responsible entities making a request to establish or operate a child care facility shall have:
    a. an Oklahoma State Courts Network search conducted by the Department,
    b. a Restricted Registry search conducted by the facility,
    c. a national criminal history records search conducted pursuant to paragraph 10 of this subsection,
    d. a criminal history records and sex offender registry search conducted by an authorized source, when the individual has lived outside this state within the last five (5) years,
    e. a search of the Department of Corrections' files maintained pursuant to the Sex Offenders Registration Act and conducted by the Department of Human Services,
    f. a search of any available child abuse and neglect registry within a state the individual has resided in within the last five (5) years,

g. search of the nontechnical services worker abuse registry maintained by the State Department of Health pursuant to Section 1-1950.7 of Title 63 of the Oklahoma Statutes, and

h. a search of the community services worker registry maintained by the Department of Human Services pursuant to Section 1025.3 of Title 56 of the Oklahoma Statutes;

2. Prior to the employment of an individual:

a. an Oklahoma State Courts Network search, conducted by the Department, shall be requested and received by the facility; provided however, if twenty-four (24) hours has passed from the time the request to the Department was made, the facility may initiate employment, notwithstanding the provisions of this paragraph,

b. a Restricted Registry search shall be conducted by the facility with notification of the search submitted to the Department,

c. a national criminal history records search pursuant to paragraph 10 of this subsection shall be submitted,

d. a criminal history records and sex offender registry search conducted by an authorized source, when the individual has lived outside this state within the last five (5) years, shall be submitted to the Department,

e. a search of the Department of Corrections' files maintained pursuant to the Sex Offenders Registration Act shall be conducted by the Department and received by the facility,

f. a search of any available child abuse and neglect registry within a state the individual has resided in within the last five (5) years,

g. search of the nontechnical services worker abuse registry maintained by the State Department of Health pursuant to Section 1-1950.7 of Title 63 of the Oklahoma Statutes, and

h. a search of the community services worker registry maintained by the Department of Human Services pursuant to Section 1025.3 of Title 56 of the Oklahoma Statutes;

3. Prior to allowing unsupervised access to children by employees or individuals, including contract employees and volunteers and excluding the exceptions in paragraph 8 of this subsection:

a. Oklahoma State Courts Network search results, conducted by the Department, shall be received by the facility,

b. a Restricted Registry search shall be conducted by the facility with notification of the search submitted to the Department,

c. national criminal history records search results pursuant to paragraph 10 of this subsection shall be received by the facility,

d. a criminal history records and sex offender registry search conducted by an authorized source, when the individual has lived outside this state within the last five (5) years shall be submitted to the Department,

e. a search of the Department of Corrections' files maintained pursuant to the Sex Offenders Registration Act shall be conducted by the Department and received by the facility,

f. a search of any available child abuse and neglect registry within a state the individual has resided in within the last five (5) years,

g. search of the nontechnical services worker abuse registry maintained by the State Department of Health pursuant to Section 1-1950.7 of Title 63 of the Oklahoma Statutes, and

h. a search of the community services worker registry maintained by the Department of Human Services pursuant to Section 1025.3 of Title 56 of the Oklahoma Statutes;

4. Prior to the issuance of a permit or license and prior to the residence of adults who subsequently move into a facility, adults living in the facility excluding the exception in paragraph 7 of this subsection shall have:

a. an Oklahoma State Courts Network search conducted by the Department and the facility shall be in receipt of the search results,

b. a Restricted Registry search conducted by the facility with notification of the search submitted to the Department,

c. a national criminal history records search conducted pursuant to paragraph 10 of this subsection,

d. a criminal history records and sex offender registry search conducted by an authorized source, when the individual has lived outside this state within the last five (5) years,

e. a search of the Department of Corrections' files maintained pursuant to the Sex Offenders Registration Act conducted by the Department and received by the facility,

f. a search of any available child abuse and neglect registry within a state the individual has resided in within the last five (5) years,

g. search of the nontechnical services worker abuse registry maintained by the State Department of Health pursuant to Section 1-1950.7 of Title 63 of the Oklahoma Statutes, and

h. a search of the community services worker registry maintained by the Department of Human Services pursuant to Section 1025.3 of Title 56 of the Oklahoma Statutes;

5. Children who reside in the facility and turn eighteen (18) years of age excluding the exception in paragraph 7 of this subsection shall have:

a. an Oklahoma State Courts Network search conducted by the Department,

b. a Restricted Registry search conducted by the facility with notification of the search submitted to the Department,

c. a national criminal history records search conducted pursuant to paragraph 10 of this subsection, and

d. a search of the Department of Corrections' files pursuant to the Sex Offenders Registration Act conducted by the Department and received by the facility;

6. Prior to review of or access to fingerprint results, owners, responsible entities, directors, and other individuals who have review of or access to fingerprint results shall have a national criminal history records search pursuant to paragraph 10 of this subsection;

7. Provisions specified in paragraphs 4 and 5 of this subsection shall not apply to residents who are receiving services from a residential child care facility;

8. A national criminal history records search pursuant to paragraph 10 of this subsection shall not be required for volunteers who transport children on an irregular basis when a release is signed by the parent or legal guardian noting their understanding that the volunteer does not have a completed national criminal history records search. The provisions in paragraph 3 of this subsection shall not be required for specialized service professionals who are not employed by the program and have unsupervised access to a child when a release is signed by the parent or legal guardian noting his or her understanding of this exception. These exceptions shall not preclude the Department from requesting a national fingerprint or an Oklahoma State Bureau of Investigation name-based criminal history records search or investigating criminal, abusive, or harmful behavior of such individuals, if warranted;
9. A national criminal history records search pursuant to paragraph 10 of this subsection shall be required on or before November 1, 2016, for existing owners, responsible entities, employees, individuals with unsupervised access to children, and adults living in the facility, as of November 1, 2013, unless paragraph 6 of this subsection applies;
10. The Department shall require a national criminal history records search based upon submission of fingerprints that shall:

a. be conducted by the Oklahoma State Bureau of Investigation and the Federal Bureau of Investigation pursuant to Section 150.9 of Title 74 of the Oklahoma Statutes and the federal National Child Protection Act and the federal Volunteers for Children Act with the Department as the authorized agency,
b. be submitted and have results received between the Department and the Oklahoma State Bureau of Investigation through secure electronic transmissions,
c. include Oklahoma State Bureau of Investigation rap back, requiring the Oklahoma State Bureau of Investigation to immediately notify the Department upon receipt of subsequent criminal history activity, and
d. be paid by the individual or the facility;

11. The Director of the Department, or designee, shall promulgate rules that may authorize an exception to the fingerprinting requirements for individuals who have a severe physical condition which precludes such individuals from being fingerprinted;
12. The Director of the Department, or designee, shall promulgate rules that ensure individuals obtain a criminal history records search, not to include the re-submission of fingerprints, not less than once during each five (5) year period;
13. Any individual who refuses to consent to the criminal background check or knowingly makes a materially-false statement in connection with such criminal background check shall be ineligible for ownership of, employment of or residence in a child care facility; and
14. The Office of Juvenile Affairs shall require national criminal history records searches, as defined by Section 150.9 of Title 74 of the Oklahoma Statutes, which shall be provided by the Oklahoma State Bureau of Investigation for the purpose of obtaining the national criminal history records search, including Rap

Back notification of and through direct request by the Office of Juvenile Affairs on behalf of any:

a. operator or responsible entity making a request to establish or operate a secure detention center, municipal juvenile facility, community intervention center or secure facility licensed or certified by the Office of Juvenile Affairs,

b. employee or applicant of a secure detention center, municipal juvenile facility, community intervention center or secure facility licensed or certified by the Office of Juvenile Affairs, or

c. persons allowed unsupervised access to children, including contract employees or volunteers, of a secure detention center, municipal juvenile facility, community intervention center or secure facility licensed or certified by the Office of Juvenile Affairs.

B. 1. a. On and after September 1, 1998:

(1) any child-placing agency contracting with a person for foster family home services or in any manner for services for the care and supervision of children shall also, prior to executing a contract, complete:

(a) a foster parent eligibility assessment for the foster care provider except as otherwise provided by divisions (2) and (4) of this subparagraph, and

(b) a national criminal history records search based upon submission of fingerprints for any adult residing in the foster family home through the Department of Human Services pursuant to the provisions of Section 1-7-106 of Title 10A of the Oklahoma Statutes, except as otherwise provided by divisions (2) and (4) of this subparagraph,

(2) the child-placing agency may place a child pending completion of the national criminal history records search if the foster care provider and every adult residing in the foster family home has resided in this state for at least five (5) years immediately preceding such placement,

(3) a national criminal history records search based upon submission of fingerprints to the Oklahoma State Bureau of Investigation shall also be completed for any adult who subsequently moves into the foster family home,

(4) provided, however, the Director of Human Services or the Director of the Office of Juvenile Affairs, or a designee, may authorize an exception to the fingerprinting requirement for a person residing in the home who has a severe physical condition which precludes such person's being fingerprinted, and

(5) any child care facility contracting with any person for foster family home services shall request the Office of Juvenile Affairs to conduct a juvenile justice information system review, pursuant to the provisions of Sections 2-7-905 and 2-7-308 of Title 10A of the Oklahoma Statutes, for any child over the age of thirteen (13) years residing in the foster family home, other than a foster child, or who subsequently moves into the foster family home. As a condition of contract, the child care facility shall obtain the consent of the parent or legal guardian of the child for such review.

b. The provisions of this paragraph shall not apply to foster care providers having a contract or contracting with a child-placing agency, the Department of Human Services or the Office of Juvenile Affairs prior to September 1, 1998. Such existing foster care providers shall comply with the provisions of this section, until otherwise provided by rules of the Department or by law.

2. a. (1) On and after September 1, 1998, except as otherwise provided in divisions (2) and (4) of this subparagraph, prior to contracting with a foster family home for placement of any child who is in the custody of the Department of Human Services or the Office of Juvenile Affairs, each Department shall complete a foster parent eligibility assessment, pursuant to the provisions of the Oklahoma Child Care Facilities Licensing Act, for such foster family applicant. In addition, except as otherwise provided by divisions (2) and (4) of this subparagraph, the Department shall complete a national criminal history records search based upon submission of fingerprints for any adult residing in such foster family home.

(2) The Department of Human Services and Office of Juvenile Affairs may place a child pending completion of the national criminal history records search if the foster care provider and every adult residing in the foster family home has resided in this state for at least five (5) years immediately preceding such placement.

(3) A national criminal history records search based upon submission of fingerprints conducted by the Oklahoma State Bureau of Investigation shall also be completed for any adult who subsequently moves into the foster family home.

(4) The Director of Human Services or the Director of the Office of Juvenile Affairs or their designee may authorize an exception to the fingerprinting requirement for any person residing in the home who has a severe physical condition which precludes such person's being fingerprinted.

b. The provisions of this paragraph shall not apply to foster care providers having a contract or contracting with a child-placing agency, the Department of Human Services or the Office of Juvenile Affairs prior to September 1, 1998. Such existing foster care providers shall comply with the provisions of this section, until otherwise provided by rules of the Department or by law.

3. The Department of Human Services or the Office of Juvenile Affairs shall provide for a juvenile justice information system review pursuant to Section 2-7-308 of Title 10A of the Oklahoma Statutes for any child over the age of thirteen (13) years residing in a foster family home, other than the foster child, or who subsequently moves into the foster family home.

C. The Department or the Board of Juvenile Affairs shall promulgate rules to identify circumstances when a criminal history records search or foster parent eligibility assessment for an applicant or contractor, or any person over the age of thirteen (13) years residing in a private residence in which a child care facility is located, shall be expanded beyond the records search conducted by the Oklahoma State Bureau of Investigation or as otherwise provided pursuant to this section.

D. Except as otherwise provided by the Oklahoma Children's Code and subsection F of this section, a conviction for a crime shall not be an absolute bar to employment, but shall be considered in relation to specific employment duties and responsibilities.

E. 1. Information received pursuant to this section by an owner, administrator, or responsible entity of a child care facility, shall be maintained in a confidential manner pursuant to applicable state and federal laws.

2. The information, along with any other information relevant to the ability of the individual to perform tasks that require direct contact with children, may be released to another child care facility in response to a request from the child care facility that is considering employing or contracting with the individual unless deemed confidential by state and federal laws.

3. Requirements for confidentiality and recordkeeping with regard to the information shall be the same for the child care facility receiving the information in response to a request as those provided for in paragraph 1 of this subsection for the child care facility releasing such information.

4. Information received by any facility certified by the Office of Juvenile Affairs may be released to another facility certified by the Office if an individual is being considered for employment or contract, along with any other relevant information, unless the information is deemed confidential by state or federal law. Any information received by the Office shall be maintained in a confidential manner pursuant to applicable state and federal law.

F. 1. It shall be unlawful for individuals who are required to register pursuant to the Sex Offenders Registration Act to work with or provide services to children or to reside in a child care facility and for any employer who offers or provides services to children to knowingly and willfully employ or contract with, or allow continued employment of or contracting with individuals who are required to register pursuant to the Sex Offenders Registration Act. Individuals required to register pursuant to the Sex Offenders Registration Act who violate any provision of Section 401 et seq. of this title shall, upon conviction, be guilty of a felony punishable by incarceration in a correctional facility for a period of not more than five (5) years and a fine of not more than Five Thousand Dollars ($5,000.00) or both such fine and imprisonment.

2. It shall be unlawful for an individual who is the perpetrator of a substantiated finding by the Department of heinous and shocking abuse by a person responsible for a child's health, safety, or welfare, as those terms are defined in Section 1-1-105 of Title 10A of the Oklahoma Statutes, to work with or provide services to children or to reside in a child care facility and for any employer who offers or provides services to children to knowingly and willfully employ or contract with, or allow continued employment of or contracting with such individual.

3. Upon a determination by the Department of any violation of the provisions of this section, the violator shall be subject to and the Department may pursue:

a. an emergency order,
b. license revocation or denial,
c. injunctive proceedings,
d. an administrative penalty not to exceed Ten Thousand Dollars ($10,000.00), and
e. referral for criminal proceedings.

4. In addition to the penalties specified by this section, the violator may be liable for civil damages.

Section 404.2- Demarion's Law

This act shall be known and may be cited as "Demarion's Law".

Section 404.3- Mandatory Liability Insurance Requirements for Child Care Facility- Reports-Rules- Notices-Exempt Facilities and Agencies- Failure to Comply

A. A child care facility shall maintain general liability insurance coverage as defined by Section 707 of Title 36 of the Oklahoma Statutes of at least Two Hundred Thousand Dollars ($200,000.00) for each occurrence of negligence. An insurance policy or contract required under this section shall cover injury to a child due to negligence that occurs while the child is in the care of the child care facility.

B. The Department of Human Services shall promulgate rules providing for a standard form to be signed and dated by an insurance agent licensed in this state stating that the child care facility has an unexpired and uncancelled insurance policy or contract of at least Two Hundred Thousand Dollars ($200,000.00) that meets the requirements of this section. This form shall be completed annually and shall be maintained by the child care facility. Upon request, the form shall be made available to the Department to determine compliance with licensing requirements.

C. Should the child care facility for financial reasons or for lack of availability of an underwriter willing to issue a policy be unable to secure the insurance required under subsection A of this section, should the policy limits be exhausted, or if the child care facility reports self-insurance in accordance with state law the child care facility shall:

1. Post a conspicuous notice at the facility indicating the facility does not have liability insurance coverage pursuant to this section or reports self-insurance in accordance with state law;
2. Notify the Department that coverage is not provided or that the facility reports self-insurance in accordance with state law; and
3. Keep a form signed by the parent or legal guardian of each child that he or she has been told that the child care facility does not carry at least Two Hundred Thousand Dollars ($200,000.00) of general liability insurance.

D. The Department shall promulgate rules providing for a standard notice form for the facility to post which indicates the facility does not carry liability insurance or reports self-insurance in accordance with state law. The form required pursuant to paragraph 1 of subsection C of this section shall be:

1. Printed with lettering that is legible and in at least three-fourths-inch boldfaced type;
2. Placed at the main entrance of the facility in a conspicuous location; and
3. Copied and provided to the parent or legal guardian of each child under supervision of the child care facility.

E. In no case shall the inability to secure coverage serve to indemnify the child care facility due to negligence.

F. The insurance policy or contract shall be maintained at all times in an amount as required by this section, except as provided for in subsection C of this section.
G. Each child care facility shall maintain a copy of the most recent compliance file onsite. The Department shall promulgate rules providing for a standard notice form for the facility to post which indicates:

1. The facility has a copy of the most recent compliance files onsite for inspection upon request of a parent or guardian of each child under the supervision of the child care facility; and
2. Such files are also made available for public inspection by the Department.

H. The forms required pursuant to this subsection shall be:

1. Printed with lettering that is legible and in at least three-fourths-inch boldfaced type;
2. Placed at the main entrance of the facility in a conspicuous location; and
3. Copied and provided to the parent or legal guardian of each child under supervision of the child care facility.

I. The requirements for posting provided by subsection D and G of this section shall not apply to:

1. Licensed child-placing agencies;
2. Licensed residential child care facilities; or
3. Department-certified child care facilities.

J. The Department may promulgate rules requiring liability insurance for facilities listed in subsection I of this section.
K. Failure by a child care facility to comply with the provisions of this section is grounds for suspension or revocation of the child care facility license under the Oklahoma Child Care Facilities Licensing Act.
L. The Department shall promulgate rules to implement the provisions of this section.

Section 405- License and Permit Requirements for Child Care Facilities- Application- Issuance

A. No child care facility may be operated or maintained in this state, unless licensed or temporarily authorized by the Department of Human Services, except for the shelters certified by the Office of Juvenile Affairs pursuant to Section 2-7-202 of Title 10A of the Oklahoma Statutes; No new child care facility may be established without the prior approval of the Department, which shall be granted only after the Department is satisfied that the facility will meet minimum standards for a license to operate.
B. The Department shall not grant approval for a permit, or a license for a new child care facility to receive and care for children until:

1. All background investigation requirements are met pursuant to Section 404.1 of this title; and
2. All required training including, but not limited to, cardiopulmonary resuscitation (CPR), first aid, health and safety training, and minimum education requirements pursuant to licensing requirements have been completed for any person left alone with children.

C. The incorporation or domestication of a corporation organized for the purpose of operating a child care facility shall not exempt such corporation from compliance with the provisions of Sections 401 through 418 of this title.

D. An application for a license shall be made on forms provided by the Department and in the manner prescribed. Temporary authorization may be granted to allow the Department to investigate the activities and standards of care of the applicant. The Department may issue a license once it is satisfied that the applicant meets the requirements as provided in Sections 401 through 418 of this title. All licenses shall be in force unless revoked as authorized by Section 407 of this title.

Section 405.1- Comprehensive Oklahoma State Plan for Child Care

A. The Department of Human Services shall collaborate with other appropriate agencies to develop a comprehensive Oklahoma state plan for child care.
B. The comprehensive plan shall:
1. Meet all requirements for child care state plans as periodically determined by the United States Department of Health and Human Services Administration for Children and Families Child Care Bureau; and
2. Be submitted to the Speaker of the Oklahoma House of Representatives and the President Pro Tempore of the Senate on a biannual basis.

Section 405.2- Public Online Database- Licensed Child Care Centers and Child Care Homes

A. The Department of Human Services shall promulgate rules to establish and maintain an online database accessible to the public that contains information including, but not limited to:
1. The name, address, and phone number of all child care centers licensed by the Department of Human Services, and the name, address, and phone number of all child care homes licensed by the Department; and
2. A summary of substantiated complaint records and inspection reports generated by the Department.
B. Child care licensing records and inspection reports shall be maintained by the facility and be posted or made available to individuals pursuant to the licensing requirements promulgated by the Department.

Section 405.3- Child Care Restricted Registry

A. The Department of Human Services shall promulgate rules to establish and maintain the Restricted Registry, accessible to the public through an online database, to address:
1. A procedure for recording individuals on the Restricted Registry resulting from:
a. a substantiated finding of abuse or neglect, as defined in Section 1-1-105 of Title 10A of the Oklahoma Statutes, by an individual when the abuse or neglect occurred to a child while in the care of a facility licensed, certified, operated or contracted by or with the Department or the Office of Juvenile Affairs. The provisions of this subparagraph shall apply to:
(1) the Central Oklahoma Juvenile Center, the Oklahoma Juvenile Center for Girls and the Southwest Oklahoma Juvenile Center upon the effective date of this act, and

(2) facilities licensed by, certified by or contracting with the Office of Juvenile Affairs after November 1, 2018.

b. a revocation or denial of a child care facility license, and

c. a specified criminal history of an individual, as defined by rules promulgated by the Department;

2. A procedure to provide notice and an opportunity for review to the individual and, if the individual is an employee of a facility licensed, certified, operated or contracted by or with the Office of Juvenile Affairs, to the facility prior to recording an individual on the Restricted Registry;

3. Disclosure requirements for information on the Restricted Registry; and

4. A procedure to prohibit licensure, ownership, employment, unsupervised access to children or residence in a facility or program licensed, certified, operated or contracted with by the Department or the Office of Juvenile Affairs.

B. The Restricted Registry shall include, but not be limited to:

1. The full name of the individual;

2. Information necessary to identify the individual; and

3. The date the individual was recorded on the Restricted Registry.

C. Nothing in this section shall be construed as to permit the placement of an operator of a child care facility on the Restricted Registry unless the operator:

1. Is the subject of a substantiated finding of child abuse or neglect;

2. Has been subject to a revocation or denial of a child care facility license; or

3. Has a specified criminal history, as defined by rules promulgated by the Department.

Section 405.4- Educational Requirements for Director of Child Care Center-Minimum Size of Rooms Occupied by Infants

A. Any person with a bachelor's degree or postgraduate degree shall be considered as having met the educational requirements for a director of a full-time child care center required by the Department of Human Services. Nothing in this section shall be construed as to affect annual continuing education requirements. The director of a child care center may also qualify as a master teacher for children of all ages.

B. Any person replacing a master teacher at a child care center shall be granted a one-year probationary period to fulfill the educational qualifications required by the Department for a master teacher. The Department may extend the probationary period an additional year as long as the person is actively pursuing that goal.

C. Licensed child care facilities opened or expanded before November 1, 2016, shall have thirty-five (35) square feet of floor area per infant in rooms occupied only by infants. New construction and existing space not previously licensed for child care after November 1, 2016, shall have forty (40) square feet of floor area per infant in rooms occupied only by infants.

Section 405.5- Authorization of Certain Persons to Operate Child Care Facilities-Notice and Conditions

A. An individual who inherits or purchases a licensed child care facility and operates the facility with the same personnel employed by the previous owner may continue to

operate the facility under the same license and at the same star rating as the previous owner for a period of ninety (90) calendar days.
B. The Department of Human Services shall be notified of any change of ownership of a licensed child care facility by the next Department of Human Services business day and prior to the new owner assuming operations of the facility.
C. If individuals who receive ownership of a licensed child care facility through purchase or inheritance have met all requirements for owners of child care facilities by the end of the ninety-calendar-day period established in subsection A of this section, they may continue to operate the facility at the same star rating. If all requirements have not been met, the facility may not care for children until the facility is authorized to do so by the Department.
D. Nothing in this section shall be construed as prohibiting the Department from exercising its authority to revoke the license of a child care facility as provided in Section 407 of Title 10 of the Oklahoma Statutes during the ninety-calendar-day period established in subsection A of this section.

Section 406- Investigations and Visitation

A. 1. Except as provided in paragraph 2 of this subsection, the Department of Human Services shall have authority at any reasonable time to investigate and examine the conditions of any child care facility in which a licensee or applicant hereunder receives and maintains children, and shall have authority at any time to require the facility to provide information pertaining to children in its care.

2. When the Department of Human Services is reviewing the star rating of a child care program with a capacity of fifty or more, the comprehensive visit to inspect and examine the program shall be scheduled with the administration of the program at least one (1) week in advance of the visit, if requested by the child care facility.

B. 1. The State Department of Health may visit any licensee or applicant at the request of the Department to advise on matters affecting the health of children and to inspect the sanitation of the buildings used for their care.

2. The State Fire Marshal may visit any licensee or applicant at the request of the Department to advise on matters affecting the safety of children and to inspect the condition of the buildings used for their care.

C. 1. Upon receipt of a complaint against any child care facility alleging a violation of the provisions of the Oklahoma Child Care Facilities Licensing Act, or any licensing standard promulgated by the Department, the Department shall conduct a full investigation. If upon investigation, it is determined that there are reasonable grounds to believe that a facility is in violation of the Oklahoma Child Care Facilities Licensing Act or of any standard or rule promulgated pursuant thereto, the Department shall:

a. document the complaint,

b. provide the complaint allegations in writing to the facility involved and, upon written request by the child care facility, provide a summary of the facts used to evaluate the completed complaint, and

c. document the facility's plan for correcting any substantiated violations.

2. If the Department determines there has been a violation and the violation has a direct impact on the health, safety or well-being of one or more of the children

cared for by the facility, the Department shall notify the facility and require correction of the violation.

3. The Department shall notify the facility that failure to correct the confirmed violation can result in the revocation of the license, the denial of an application for a license, the issuance of an emergency order or the filing of an injunction pursuant to the provisions of Section 409 of this title.

4. If the facility refuses to correct a violation or fails to complete the plan of correction, the Department may issue an emergency order, revoke the license, or deny the application for a license. Nothing in this section or Section 407 of this title shall be construed as preventing the Department from denying an application, revoking a license, or issuing an emergency order for a single violation of this act, or the rules of the Department as provided in Section 404 of this title.

5. If the Department determines there has been a substantiated finding of heinous and shocking abuse by a person responsible for a child's health, safety or welfare, as those terms are defined in Section 1-1-105 of Title 10A of the Oklahoma Statutes, the Department shall notify the child care facility owner or operator and the child care resource and referral organization in writing immediately or not later than one (1) business day after the substantiated finding. Upon receiving notice of a substantiated finding, the facility owner or operator shall attempt to immediately notify, but not later than seventy-two (72) hours after receiving notice of the substantiated finding, parents or legal guardians of children attending the facility by certified mail.

D. Upon the completion of the investigation of a complaint against any child care facility alleging a violation of the provisions of the Oklahoma Child Care Facilities Licensing Act or any licensing standard promulgated thereto by the Department, the Department shall clearly designate its findings on the first page of the report of the investigation. The findings shall state whether the complaint was substantiated or unsubstantiated.

E. Information obtained by the Department or Oklahoma Child Care Services concerning a report of a violation of a licensing requirement, or from any licensee regarding children or their parents or other relatives shall be deemed confidential and privileged communications, shall be properly safeguarded, and shall not be accessible to anyone except as herein provided, unless upon order of a court of competent jurisdiction. Provided, however, this provision shall not prohibit the Department from providing a summary of allegations and findings of an investigation involving a child care facility that does not disclose identities but that permits parents to evaluate the facility.

F. The Department shall promulgate rules to establish and maintain a grievance process that shall include an anonymous complaint system for reporting and investigating complaints or grievances about employees of the Department who retaliate against a child care facility or facility employee.

Section 406.1- Indian Tribal Child Care Facility Electing Licensure Under Oklahoma Child Care Facilities Licensing Act- Agreement for State Inspection

A. If an Indian tribe in this state that operates a child care facility elects to apply for a license for the facility pursuant to the Oklahoma Child Care Facilities Licensing Act, the

Department of Human Services, the State Department of Health, and the State Fire Marshal may enter into an agreement with the Indian tribe to allow the state to conduct any inspections of the facility necessary to comply with the licensing provisions of the Oklahoma Child Care Facilities Licensing Act.

B. As part of the agreement authorizing the state to conduct inspections as provided in this section, the state and the Indian tribe may agree to a payment of a fee by the Indian tribe to the state in an amount not to exceed the reasonable cost to the state to conduct the inspections.

Section 407- Revocation or Denial of Issuance of License

A. The Department of Human Services may revoke or deny issuance of the license of any child care facility found to be in violation of any provision of this act or the rules of the Department, as provided in Section 404 of this title.

B. 1. No license shall be revoked or issuance denied unless and until such time as the licensee or applicant shall have been given at least thirty (30) days' notice in writing of the grounds of the proposed revocation or denial.

2. At the time the facility is given notice in writing of the revocation or denial of a license, the Department shall also advise parents of children attending the facility and the child care resource and referral organization within one (1) business day of such action by verbal, electronic, or written notification and the posting of an announcement in the facility.

3. If the revocation or denial is protested within thirty (30) days of receipt of notice, by writing addressed to the Department, the Department, or its authorized agency, shall conduct a hearing at which an opportunity shall be given to the licensee or applicant to present testimony and confront witnesses.

4. Notice of the hearing shall be given to the licensee or applicant by personal service or by delivery to the proper address by certified mail, return receipt requested, at least two (2) weeks prior to the date thereof.

5. If notice of the proposed revocation or denial of a license is not protested, the license shall be revoked or denied.

C. 1. Nothing in this section or Section 406 of this title shall be construed as preventing the Department from taking emergency action as provided by this subsection.

2. For the purposes of this subsection, "emergency" means a situation that poses a direct and serious threat to the health, safety, or welfare of any child cared for by the facility.

3. Whenever the Department finds, after an investigation, that an emergency exists requiring immediate action to protect the health, safety, or welfare of any child cared for by a facility licensed, authorized, or providing unlicensed care except as exempted by the provisions of the Oklahoma Child Care Facilities Licensing Act, the Department may without notice or hearing issue an emergency order stating the existence of such an emergency and requiring that such action be taken as it deems necessary to meet the emergency including, when necessary, removing children from the facility and prohibiting the facility from providing services to children pending a hearing on the matter.

a. An emergency order shall be effective immediately. Any person to whom an emergency order is directed shall comply with the emergency order immediately but, upon written request to the Department on or before the tenth day after receipt of the emergency order, shall be afforded a hearing on or before the tenth day after receipt of the request by the Department.

b. On the basis of such hearing, the Department shall continue the order in effect, revoke it, or modify it.

c. Any person aggrieved by the order continued after the hearing provided for in this subsection may appeal to the district court of the area affected within ten (10) days. The appeal when docketed shall have priority over all cases pending on the docket, except criminal cases.

D. The Department shall establish a process to review the initial determination of the closure of a facility due to an emergency pursuant to the licensing requirements promulgated by the Department.

E. The Department shall continue to monitor any facility whose license has been revoked, denied, or who has had an emergency order issued for a period of thirty (30) days after the action becomes final.

F. In addition to any other remedy authorized by this act, a CLEET-certified officer may issue a citation for a violation of any provision of this act or rules of the Department as provided in Section 404 of this title. The fine shall not be less than One Hundred Dollars ($100.00) nor more than Five Hundred Dollars ($500.00) for every day the facility maintains and receives children after:

1. An emergency order has been issued; or
2. An application for a license has been denied or the license has been revoked.

G. One-half (1/2) of the funds collected pursuant to subsection F of this section shall be deposited in the Quality of Care Development Fund established in Section 10 of this act and one-half (1/2) shall be retained by the law enforcement agency represented by the CLEET-certified officer.

Section 408- Appeals

A. Any licensee or applicant aggrieved by the decision of the Department of Human Services under Section 407 of this title may, within ten (10) days after the revocation or denial of the license, appeal to the district court of the county in which the child care facility is maintained and operated by filing with the clerk of the court a verified petition. Notice of such appeal shall be served on the Director of the Department within five (5) days of the date of its filing.

B. The licensee or applicant shall, within twenty (20) days of the filing of the appeal, file with the clerk of such court a transcript of the proceedings held pursuant to Section 407 of this title. The district court shall thereupon be vested with jurisdiction to review the proceedings of the Department; provided that, if the Department prevails, the judgment of the district court shall be that the decision of the Department be affirmed, and if the licensee or applicant prevails, the judgment of the court shall be that the revocation be set aside or the license issued or renewed, as the case may be. Pending the hearing of the appeal, the action of the Department revoking or denying the license or the granting thereof shall be stayed; provided, after the filing of an appeal, the district court, upon

application by the Department and after an appropriate hearing, may grant a restraining order to enforce the decision of the Department.

Section 409- Injunction

Any person or child care facility may be enjoined from maintaining and operating such facility for violations of any provisions of this act by suit brought in the name of the state by the Attorney General of Oklahoma or by a district attorney.

Section 410- Violations- Punishment

Any person or agent, representative, or officer of any child care facility who violates any of the provisions of he Oklahoma Child Care Facilities Licensing Act shall, upon conviction, be deemed guilty of a misdemeanor and punished in accordance with the provisions of Section 10 of Title 21 of the Oklahoma Statutes. Whenever any agent, representative, or officer of any child care facility shall be convicted under authority of this act, such conviction shall be sufficient ground for the revocation of the entity's license.

Section 410.1- Quality of Care Development Fund

There is established in the State Treasury a revolving fund to be known as the "Quality of Care Development Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all fines collected by the Department of Human Services pursuant to Section 407 of this title and shall, in addition to any other monies made available for such purpose, be available to the Director solely to support the continued improvement of the child care facilities in this state. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

Section 411- Certificate of Immunizations as Condition for Admission to Day Care Facility- Waiver

A. No person, firm, corporation, partnership or other legal entity operating a day care center or day care home in this state shall cause or permit a minor child two (2) months of age or older to be admitted to such facility unless and until the parent, guardian, or other related person of such child presents certification from a licensed physician or authorized representative of any state or local department of public health that such child has received or will receive immunization at the medically appropriate time against diphtheria, pertussis, tetanus, haemophilus influenzae type B (HIB), measles (rubeola), rubella, hepatitis A, varicella, and poliomyelitis; or presents such certification that the child is likely to be immune as a result of the disease. Provided, however, that in the event the parent, guardian, or other person presenting a child for admission to a day care center or day care home certifies in writing that a family emergency exists, the requirement imposed by this section may be waived for a period not to exceed thirty

(30) days. Such certification shall be made prior to the provision of care. No such waiver shall be knowingly permitted more than once for any child.
B. The State Board of Health, by rule, may alter the list of immunizations required under this section after notice and hearing. Any change in the list of immunizations required shall be submitted to the next regular session of the Legislature and such change shall remain in force and effect unless and until a concurrent resolution of disapproval is passed. Hearings shall be conducted by the State Board of Health, or such officer, agents or employees as the State Board of Health may designate for that purpose. The State Board of Health shall give appropriate notice of the proposed change in the list of immunizations required and of the time and place for hearing. The change shall become effective on a date fixed by the State Board of Health. Any change in the list of immunizations required may be amended or repealed in the same manner as provided for its adoption. Proceedings pursuant to this subsection shall be governed by the Administrative Procedures Act.

Section 412- Manner and Frequency of Immunizations- Enforcement of Act

A. The immunizations required by this act, and the manner and frequency of their administration, as prescribed by the State Board of Health, shall conform to recognized standard medical practices in this state. The State Department of Health shall supervise and secure the enforcement of the required immunization program.
B. The Department of Human Services shall render reasonable assistance to the State Department of Health in the enforcement of the provisions of this act. This assistance shall be in the form of revocation or denial of the license of any facility not in compliance with this act.

Section 413- Exemptions

Any minor child, through his or her parent or guardian, may submit to the health authority charged with the enforcement of the immunization laws, a certificate of a licensed physician stating that the physical condition of the child is such that immunization would endanger the life or health of the child; or upon receipt of a written statement by the parent or guardian objecting to such immunizations because of religious or other reasons, then such child shall be exempt from the provisions of this act.

Section 414- Administration of Immunizations- Persons Eligible- Indigent Persons

The immunizations shall be administered by, or under the direction of, a licensed physician, or by any local or state health department. If the parent or guardian is unable to pay, the State Department of Health shall provide, without charge, the immunization materials required by this act.

SUPPLEMENT I

Section 415- Child with Reportable Contagious Disease to be Excluded from Day Care Facility

Any child afflicted with a reportable contagious disease shall be excluded from attending a day care center or day care home until such time as the period of communicability has elapsed as determined by a licensed physician or health department official. Such exclusion shall be reported to a local health department official.

Section 418- Authority to Obtain Evidence- Administration of Oaths

When conducting investigations of complaints as provided in this article, the Department of Public Welfare shall have the power to summon any person to appear and produce such books and papers as shall be designated in the summons, and to give testimony under oath concerning the matter and institution under investigation. The Department shall have the power to administer oaths to such persons as may be summoned and to enforce all such powers as are given to notaries public when they are taking depositions.

Section 420- Child Care Center Bill of Rights- Documentation of Training Compliance

The Child Care Center Bill of Rights includes if a child care center or employee provides written documentation of completion of required training, the child care center shall not be found in noncompliance if computer documentation is not updated by the training provider.

Section 425- Regulations that Permit or Require Licensees to Exceed or Limit the Capacity Provided by the License

Local governing authorities shall not promulgate local regulations that permit or require licensees of family child care homes as defined in Section 402 of Title 10 of the Oklahoma Statutes to exceed or limit the capacity provided by the license granted to the family child care home licensee by the Department of Human Services.

SUPPLEMENT II

WHAT IS CHILD ABUSE?

What is the Law? Oklahoma statutes define child abuse as harm or threatened harm to a child's health or welfare by a person responsible for the child. This includes non-accidental physical or mental injury, sexual abuse or neglect (10A O.S. § 1-2-101).

- Physical abuse is non-accidental physical injury to a child.
- Mental injury is an injury to a child's psychological growth and development. It is caused by a chronic pattern of behaviors, such as belittling, humiliating and ridiculing a child.
- Sexual abuse, in general terms, includes any sexual activity between an adult and a child for the purpose of sexually stimulating the adult, the child or others. Sexual abuse may also be committed by a person under the age of 18 when that person is either significantly older than the victim or is in a position of power or control over the child.
- Neglect is the failure of the parent or caretaker to provide a child with basic needs such as food, clothing, shelter, medical care, protection and supervision.
- Threatened harm means a substantial risk of harm to the child. It may include acts or expressions of intent to inflict actual harm presently or in the future.

Who must report? Every person, private citizen or professional, who has reason to believe that a child has been abused, is mandated by law to promptly report suspected abuse. Failure to do so is a misdemeanor. A person making a report in good faith is immune from civil or criminal liability. The name of the reporter is kept confidential.

When to report? A report should be made when there is reasonable cause to believe that a child has been abused or neglected or is in danger of being abused. A report of suspected abuse is a request for an investigation. Investigation of child abuse reports is the responsibility of Child Welfare workers and, when a crime may have been committed, law enforcement officials.

If other incidents of abuse occur after the initial report has been made, another report should be made.

How is abuse reported? A report may be made to the 24-hour statewide Child Abuse and Neglect Hotline, 1-800-522-3511.

SUPPLEMENT III

DISASTER PREPAREDNESS

Child care providers must be prepared to respond to a wide variety of emergency situations. It may be evacuating children and taking them to a safe place or protecting them from outside threats by keeping them safe inside the facility. You can make sure your families know what you would do in the event of an emergency. A Disaster Plan is critical and should be in place at all times.

Disaster Plan - some things to consider:

- Identify the type of hazards that could affect your facility (tornado, terrorism, gas leaks, flooding, fire, etc.)
- Develop a step-by-step plan to respond to each situation.
- Ensure that all staff have been trained in how to respond to each situation.
- If evacuation is necessary, know where you will go off the premises (examples include designated shelter sites such as elementary schools, local community centers, churches, etc.)
- Know how you will account for each child in a disaster. Including procedures for 2 year olds and younger, children with limited mobility, and children who otherwise may need assistance in an emergency, including a child who is mentally, visually, or hearing impaired.
- If it is safest to remain in the facility, determine how you will communicate the emergency situation with parents and necessary authorities.

Disaster Kit suggestions - keep in a plastic tub or container

- Emergency contact information
- Children's record cards
- First aid kit
- Water and paper cups
- Food (examples: infant formula, animal crackers, saltines, etc.)
- Special items for babies or children with special needs (examples: diapers, baby wipes, medication)
- Toilet paper, tissues, waterless hand sanitizer
- Flashlight
- Radio - battery operated or NOAA weather radio
- Extra batteries
- Toys, books, games
- Plastic garbage bags

SUPPLEMENT IV

CHILD PASSENGER RESTRAINT SYSTEM

Oklahoma Statute
47 O.S. Section 11-1112
(Amended 06-06-17)

A. Every driver, when transporting a child under eight (8) years of age in a motor vehicle operated on the roadways, streets, or highways of this state, shall provide for the protection of said child by properly using a child passenger restraint system as follows:

1. A child under four (4) years of age shall be properly secured in a child passenger restraint system. Except as provided in subsection G of this section, the child passenger restraint system shall be rear-facing until the child reaches two (2) years of age or until the child reaches the weight or height limit of the rear-facing child passenger restraint system as allowed by the manufacturer of the child passenger restraint system, whichever occurs first; and

2. A child at least four (4) years of age but younger than eight (8) years of age, if not taller than 4 feet 9 inches in height, shall be properly secured in either a child passenger restraint system or child booster seat.

For purposes of this section and Section 11-1113 of this title, "child passenger restraint system" means an infant or child passenger restraint system which meets the federal standards as set by 49 C.F.R., Section 571.213.

B. If a child is eight (8) years of age or is taller than 4 feet 9 inches in height, a seat belt properly secured to the vehicle shall be sufficient to meet the requirements of this section.

C. The provisions of this section shall not apply to:

1. The driver of a school bus, taxicab, moped, motorcycle, or other motor vehicle not required to be equipped with safety belts pursuant to state or federal laws;

2. The driver of an ambulance or emergency vehicle;

3. The driver of a vehicle in which all of the seat belts are in use;

4. The transportation of children who for medical reasons are unable to be placed in such devices, provided there is written documentation from a physician of such medical reason; or

5. The transportation of a child who weighs more than forty (40) pounds and who is being transported in the back seat of a vehicle while wearing only a lap safety belt when the back seat of the vehicle is not equipped with combination lap and shoulder safety belts, or when the combination lap and shoulder safety belts in the back seat are being used by other children who weigh more than forty (40) pounds. Provided, however, for purposes of this paragraph, back seat shall include all seats located behind the front

seat of a vehicle operated by a licensed child care facility or church. Provided further, there shall be a rebuttable presumption that a child has met the weight requirements of this paragraph if at the request of any law enforcement officer, the licensed child care facility or church provides the officer with a written statement verified by the parent or legal guardian that the child weighs more than forty (40) pounds.

D. A violation of the provisions of this section shall be admissible as evidence in any civil action or proceeding for damages unless the plaintiff in such action or proceeding is a child under sixteen (16) years of age.

In any action brought by or on behalf of an infant for personal injuries or wrongful death sustained in a motor vehicle collision, the failure of any person to have the infant properly restrained in accordance with the provisions of this section shall not be used in aggravation or mitigation of damages.

E. A person who is certified as a Child Passenger Safety Technician and who in good faith provides inspection, adjustment, or educational services regarding child passenger restraint systems shall not be liable for civil damages resulting from any act or omission in providing such services, other than acts or omissions constituting gross negligence or willful or wanton misconduct.

F. Any person convicted of violating subsection A of this section shall be punished by a fine of Fifty Dollars ($50.00) and shall pay all court costs thereof. Revenue from such fine shall be apportioned to the Department of Public Safety Restricted Revolving Fund and used by the Oklahoma Highway Safety Office to promote the use of child passenger restraint systems as provided in Section 11-1113 of this title. This fine shall be suspended and the court costs limited to a maximum of Fifteen Dollars ($15.00) in the case of the first offense upon proof of purchase or acquisition by loan of a child passenger restraint system. Provided, the Department of Public Safety shall not assess points to the driving record of any person convicted of a violation of this section.

G. A driver of a vehicle who has been rightfully issued a detachable placard indicating physical disability under the provisions of Section 15-112 of this title or a physically disabled license plate under the provisions of Section 1135.1 or 1135.2 of this title and valid letter of forward-facing exemption issued from the Department of Public Safety shall be permitted to transport a child passenger under four (4) years of age in a forward-facing child passenger restraint system. The placard and forward-facing exemption letter must be present in the vehicle to be in compliance.

SUPPLEMENT IV

CHILD PASSENGER SAFETY IN OKLAHOMA

Most Frequently Asked Questions

- **What is the purpose and intent of the child passenger restraint law?**

  Car crashes are the number one cause of injury and death to children in Oklahoma. A 45-lb. child in a 30-mph crash will be thrown with a force of 1,350 lbs. Fortunately, child safety seats provide a 45-70 percent reduction in significant injuries, depending on the type of seat that is used (booster seat, convertible seat, infant seat, etc.).

- **What are the statistics on death or serious injuries in Oklahoma?**

  More than 20 children under 6 years of age die each year in motor vehicle crashes, and more than 1,100 children are injured, many permanently. More than 70 percent of children who die are not in a child safety seat.

- **What does the law require?**

  Children under the age of 8 must be transported using a car seat or booster seat.

  All children under age 4 must be properly secured in a car seat with an internal harness.

  - A 5-point harness is the safest restraint system and should be used as long as possible (until the child exceeds the harness' weight limit).

  Children under age 2 must be properly secured in a rear-facing car seat.

  - Rear-facing is the safest way for small children to travel, and they should remain rear-facing until they reach 2 years of age or until they exceed the height or weight limit of the car seat.
  - Riding rear-facing with legs bent or against the back of the seat is a safe and comfortable position for children. This position best protects their head, neck and spinal cord in the event of a crash.

  Children ages 4-7 must ride in a child passenger restraint system or booster seat unless they are taller than 4'9".

SUPPLEMENT IV

- **Are there exemptions to the law that affect child care facilities?**

  Exemptions include:
  - school buses, over 10,000 lbs., or any vehicle not required by law to be equipped with seat belts; and
  - medical issues prohibiting use of belt or restraint system.

- **What about older vehicles that do not have shoulder belts in the back seat? What about the center back seat position, which usually does not include a shoulder belt?**

  Belt positioning booster seats require the use of a lap/shoulder belt. There are only a few seats that do not. For this reason, an exemption was included in the law. The law “shall not apply to . . . the transportation of a child who weighs more than 40 lbs. and who is being transported in the back seat of a vehicle while wearing only a lap safety belt when the back seat of the vehicle is not equipped with combination lap and shoulder safety belts, or when the combination lap and shoulder safety belts in the back seat are being used by other children who weigh more than 40 lbs.”

  While lengthy, the exemption was worded this way in part to prevent a motorist from placing a 4- or 5-year-old child in the center lap belt with no booster seat, with empty lap/shoulder belts on either side. This wording closes that loophole for motorists who would deliberately attempt to skirt the law.

- **Are there different types of booster seats?**

  Booster seats for children over 40 lbs. (about 4 years old) generally fall into two categories: backless boosters and high-back boosters. Both are considered "belt-positioning" boosters, because they help to properly position the lap belt on the child's lap and hip bones, rather than the abdomen.

  High-back boosters are recommended for positions in vehicles that do not have head rests (usually older vans and pickup trucks). Both seats achieve the same thing: they boost the child high enough so that the seat belt fits properly.

  Both require the use of a lap/shoulder belt.

SUPPLEMENT IV

- **What are some important facts to remember considering the transportation of children?**

  Be sure that any booster seat, car seat or infant seat is used according to the manufacturer's instructions.

  Ensure that the type of passenger restraint system is used properly with the type of seat belt system that is installed in your vehicle.

  Remember to verify the particular car seat is appropriate for the specific height and weight of the child that is being transported.

- **What resources are available to help low-income families obtain car seats or booster seats?**

Some county health departments distribute free seats, mostly to WIC-eligible clients. SAFE KIDS offers subsidized seats to families who receive public assistance. The cost to the client is $15 per car seat. Car seats are distributed during community car seat events to eligible families on a first-come, first-served basis. Contact Safe Kids for a list of events in your area.

- **Where can I receive more information regarding transportation safety of children?**

  For more information, call Safe Kids Oklahoma at 405-789-6711 or visit their website at http://www.safekidsok.org/.

SUPPLEMENT V

INJURY REPORT FORM - SAMPLE

Name of injured: _____

Sex: _____ Age: _____

Date when injury occurred: _____

Time where injury occurred: _____

Location where injury occurred: _____

_____

Description of how injury occurred: _____

_____

_____

_____

_____

_____

Description of injury and its location: _____

_____

_____

Action taken on behalf of the injured: _____

_____

_____

_____

Was parent/legal guardian specifically advised of injury? _____

_____

Was parent/legal guardian specifically advised to obtain medical attention?

_____

Other witness to injury: _____

_____

Name of individual(s) involved in supervision at time of injury:

_____

Name of person completing this report form:

Date of completion of form: _____

SUPPLEMENT VI

PLAY EQUIPMENT - RECOMMENDED

Since sturdy, safe play materials are the "tools" that help children grow, develop, and learn, each caregiver must have adequate toys and play equipment to meet the needs of all the children in care.

Any toy given to a baby should be sturdy enough that it will not splinter or break, large enough so it cannot be swallowed and have no sharp points or rough edges. Toys given to infants and toddlers should not have any parts that can come loose to be swallowed (such as whistles, small rubber toys, buttons or eyes on stuffed animals), and be painted with non-toxic paint.

Play equipment must be provided for each age group in care, from the categories below.

INFANTS AND TODDLERS

Art Supplies

- non-toxic art materials e.g., play-dough, finger paint and paint with large brushes on large paper, thick crayons, washable markers

Books

- sturdy books to handle and simple story books and poems for provider to read aloud

Large Muscle Equipment

- infant activity center, crawl-through apparatus, push-pull toys, infant/ toddler rocking horse, small riding toys, small gym and slide, large hollow blocks, balls - different sizes and textures, climbing steps, wagon

Musical Equipment

- tape or CD player and tapes or CDs of assorted music, toddler drum, xylophone, tambourine, plastic maracas, hand bells, little player piano, and musical mobiles

Blocks and Accessories

- soft and textured blocks, large connecting blocks, large hollow blocks

Dramatic Play Materials

- shatterproof, unbreakable mirror, clothing, e.g., hats, capes, jackets, vests, purses, shoes and boots, scarves and mittens. Play kitchen with dishes, play tool set, small table and chairs, play telephone, soft dolls, animal figures, puppets

Manipulative Toys

- baby rattles, soft squeeze toys, infant activity gym, jumbo pop beads, nesting cups, stacking toys and rings, pounding toys, play-dough, connecting blocks and links, simple pegboards and puzzles

Science Materials

- textured surfaces to touch, water play equipment, e.g., dishpans, sponges, floating toys, spoons or scoops and containers, science related books and posters

SUPPLEMENT VI
PRE-SCHOOL CHILDREN

Art Supplies
- various sizes and colors of paper, crayons, markers, colored pencils, scissors, glue sticks, non-toxic finger paints and paints with brushes and sponges, chalk, play-dough, clay

Books
- storybooks, easy to read books for beginning readers, chapter books, books of poetry, science and fact books, comic books, child-oriented magazines and a children's dictionary

Large Muscle Equipment
- gym set, balance beam, jump ropes, stilts, ring toss, hula hoops, frisbees, hopscotch, and sports equipment, e.g., soccer, softball, basketball, tetherball, badminton

Musical Equipment
- tape or CD player and a variety of tapes or CDs, e.g., classical, jazz, rock-n-roll, children's songs, country, gospel, multicultural. A variety of musical instruments, e.g., drums, rhythm sticks, cymbals, tambourines, castanets, hand bells, maracas, xylophone, rhythm rain stick and small player piano

Blocks and Accessories
- connecting blocks, large hollow blocks, soft unit blocks, hardwood unit blocks and accessories, e.g., animals, people, cars and trucks and traffic signs

Dramatic Play Materials
- tent, tool set, doctor kit, playhouse with furniture and accessories, child-size kitchen with dishes, pots and pans and play foods, child-size table and chairs, cash register and play groceries, telephones, dress-up clothes, costumes, mirrors, dolls, doll clothes, cradles, strollers, puppets, masks, and play centers with toy figures and accessories, e.g., farm, ranch, fire station, school

Manipulative Toys
- pegboards and pegs, interlocking links and shapes, pop beads, puzzles, beads and buttons to string with thick string or yarn, nesting and stacking toys, dressing skills dolls, play-dough, writing materials, e.g., paper, pencils, crayons, markers and stencils, magnetic or flannel board with accessories, simple card games and board games

Science Materials
- aquarium, terrarium, growing plants, sandbox, water play equipment, e.g., dishpans, sponges, floating toys, eye droppers, spoons and containers, magnets and magnetic items, large unbreakable magnifying glass, collections of rocks, shells, seeds or other nature items

SUPPLEMENT VI
SCHOOL-AGE CHILDREN

Art Supplies
- various sizes and colors of paper, material and scraps, yarn, scissors, glue, crayons, markers, colored pencils, paints, paintbrushes and sponges, chalk, clay and play-dough

Books
- storybooks, easy to read books for beginning readers, chapter books, books of poetry, science and fact books, comic books, child-oriented magazines and a children's dictionary

Large Muscle Equipment
- gym set, balance beam, jump ropes, stilts, ring toss, hula hoops, frisbees, hopscotch, and sports equipment, e.g., soccer, softball, basketball, tetherball, badminton

Musical Equipment
- tape or CD player and a variety of tapes or CDs, e.g., classical, jazz, rock-n-roll, children's songs, country, gospel, multicultural. A variety of musical instruments, e.g., drums, rhythm sticks, cymbals, tambourines, castanets, hand bells, maracas, xylophone and keyboard

Blocks and Accessories
- small interlocking blocks, log builder sets, wood blocks and accessories, e.g., animals, people and vehicles

Dramatic Play Materials
- tent or playhouse, dress-up clothes and accessories, costumes, masks, dolls and accessories, doctor kit, typewriter or computer, prop boxes, e.g., office, barber/beauty shop, carpentry fix-it shop, post office, pizza parlor, garden center and grocery store

Manipulative Toys
- beads and buttons to string, puzzles, small interlocking toys and blocks, card games, board games, dominoes, video game systems, materials for sewing and weaving, play-dough and clay, writing materials, e.g., paper, pencils, crayons, markers and stencils

Science Materials
- globe of the world, magnets, magnifying glass, growing plants, gardening and watering materials, aquarium, terrarium, ant farm, scales, children's microscope, indoor/outdoor thermometer, books and posters on science topics and activities

SUPPLEMENT VII

CHILD GUIDANCE PRINCIPLES

As a caregiver, you have a unique opportunity to positively influence the children in your care. It is important that they learn to handle situations of life in ways that are socially acceptable and personally satisfying. The primary goal of guidance is to help children behave well, not to stop misbehavior.

Below are some general principles of child behavior and guidance:

1. **Children need rules.** Give children the security of clear, consistent rules. Present rules as directions, not orders or commands.

2. **Use a positive approach.** Telling a child what not to do does not prepare him for what to do. Translating the Don'ts into Do's shows a child a more acceptable way to act.

Do's	Don'ts
Just look.	Don't touch.
Hold the kitten gently.	Don't squeeze the kitten.

3. **Build feelings of confidence.** A feeling of confidence enables a child to try new things, to develop life skills and talents. Encouragement and praise build self-confidence. Belittling and criticism damage self-confidence.

Situation

Child spills a food tray.

Do's	Don'ts
"That's hard to do. Next time try carrying it this way."	"Can't you do anything right?"

4. **Change the environment to change behavior.** Look for the cause of the behavior. It may be because of the environment, and a small change will remedy the situation. (If a child spills her milk at every meal, give her a cup with a lid. If children kick each other at lunch, put them at opposite ends of the table.)

5. **Give choices.** Allow children to have choices when you can accept their decisions. Arrange the choices so that either one is acceptable. This gives the child some freedom and an opportunity for decision-making. (Do you want orange juice or apple juice?)

SUPPLEMENT VII

6. **Work with a child instead of against him.** Recognize each child's needs in relation to his developmental level. Keep in mind that each child grows and develops in his own time and way. Provide opportunities for learning that are appropriate for that particular child.

7. **Teach by example.** Children learn by example. As you model positive behaviors, you show children the behaviors you expect of them. (If you want children to speak softly, you speak softly. If you want children to sit quietly, model sitting quietly.)

8. **Don't always rush to the rescue.** Children need to learn to solve problems. Allow children to work out their own problems whenever possible.

9. **Avoid trouble.** Remember to guide desirable behavior and avoid trouble before it arises. As you get to know the children, you will be able to predict how they will behave.

10. **Recognize and encourage acceptable behavior.** If appropriate behaviors are given attention, they are likely to continue. The same is true when inappropriate behaviors are given attention.

11. **Guide children with concern and understanding.** Show an attitude of affection. Use language that children understand to explain why some behavior is inappropriate and what behavior is appropriate. Redirect the child when behavior is inappropriate.

12. **Prepare children for activities.** Give clear directions. Provide a range of activities and allow some choice. Help children to feel successful at a task. Allow children to wind down from one activity before beginning another.

13. **Use fair and consistent rules.** The atmosphere should be relaxed and pleasant. Rules should be easily understood.

14. **Use positive discipline.** Positive discipline is training that teaches self-control. Your task is to guide children in ways that allow them to control themselves.

Adapted from curriculum developed through Child Care Careers Inc.

SUPPLEMENT VIII

AGES AND STAGES OF CHILD DEVELOPMENT

Planned daily activities are important because they provide an opportunity for children to learn and have fun. They also provide structure so children will know what to expect.

A schedule of daily activities should be appropriate to each child's developmental level. Infants and toddlers need to be talked to, held and rocked. School-age children enjoy opportunities for team sports, collecting and table games. All children need to be helped to grow one step at a time at a pace that is comfortable for each of them.

Although each child grows and develops at his or her own rate, there are predictable patterns of child development. Caregivers should be familiar with the developmental patterns of children's growth. Below are some of the ages and stages of development for the typical child.

Infants

- Gain muscle strength and body control;
- Use their senses and movements to explore their surroundings;
- Develop eye and hand coordination;
- Learn to respond to and remember people, objects and activities; and
- Learn to be individuals and begin relationships with other people.

Toddlers

- Walk, run, climb;
- Want to do things "all by themselves;"
- Take the initiative in social situations;
- Change quickly from tears to smiles;
- Explore large and small spaces;
- Begin to talk, to use words, to learn the names of things; and
- Usually play alone (solitary play).

Two-Year-Olds

- Gain better muscle control of their bodies;
- Learn to say "no," (the beginning of choice making);
- Will probably be ready for toilet learning;
- Enjoy make-believe;

- Play near or side-by-side (parallel play); and
- Are interested in other children.

Three- and Four-Year-Olds

- Are learning many new physical skills;
- Are beginning to understand concepts of numbers, space and time;
- Have an active imagination and are interested in fantasy and make-believe;
- Enjoy playing with other children (associative play);
- Develop feelings about their abilities to do things ("When I do things they often turn out well" or "I always seem to do things wrong");
- Are increasing their vocabulary and using more advanced language;
- Are trying to make sense of things they learn;
- Are aware of whether they are "boys" or "girls;" are interested in what is expected of their gender and may begin to develop some modesty;
- Begin to learn the rules of playing together (cooperative play);
- May have fears and anxieties; and
- Begin to develop some inner controls which help them avoid dangerous situations and choose right from wrong.

Five-Year-Olds

- Are interested in the real world;
- Can manage a project that continues over several days;
- Like to please; can often settle arguments by themselves;
- Are sociable; like to play together; take part in group activities and cooperate (cooperative play);
- Have a beginning conscience, want to know the "right" way to do things;
- Can do small chores and tasks; are pleased with responsibility;
- Can use many words, ask lots of questions; enjoys jokes and humor; and
- Still may have troubling fears and dreams.

SUPPLEMENT VIII

Six-Year-Olds

- Are eager to learn, exuberant, restless and easily fatigued;
- Learn best through active participation;
- Enjoy spontaneous dramatization;
- Like to pretend;
- Like school;
- Are becoming competitive, but have trouble losing;
- Like group activities; and
- Are proud of themselves and their skills.

Seven-Year-Olds

- Are sensitive to the reactions of others;
- Need adults' approval;
- Are concerned about right and wrong;
- Are involved in more solitary play;
- Like jigsaw puzzles and magic tricks;
- Begin collecting things, e.g., cards, rocks;
- Like active play;
- Play more with children of their own gender;
- May take things from others (still don't fully understand the concept of ownership);
- Are beginning to ride bicycles;
- Play pretend and like to use props, e.g., post office, kitchen. grocery store items, costumes; and
- Are learning hopscotch, jump rope and bounce balls.

Eight-Year-Olds

- Are outgoing and interested in people;
- Have a new awareness of individual differences;
- Enjoy team games, comics, television and adventure stories;
- Are sensitive to criticism;
- Begin to form a group of friends; their best friends are of the same sex;

- Are beginning to read well enough to enjoy many books;
- Like table games, e.g., checkers, cards, jigsaw puzzles;
- In dramatic play, like to arrange and produce shows; and
- Enjoy collecting and arranging their collections.

Nine- and Ten-Year-Olds

- Are capable of prolonged interest;
- Often argue over fairness in games; have bursts of emotion;
- Play more complicated table games;
- May be involved with Lego sets and/or chemistry sets;
- Have a strong sense of right and wrong;
- Want to do well, but become discouraged by pressure;
- May read and/or watch television more;
- Enjoy pets; and
- Enjoy active play, e.g., running and hiding games, skating, swimming.

Eleven- and Twelve-Year-Olds

- Have a wide range of individual differences in their maturity level;
- Are unsure of bodily changes; may be moody;
- Need to feel a sense of belonging, acceptance by their peers; are subject to peer pressure;
- Are interested in earning money;
- Like to socialize;
- Frequently are overly critical, changeable, rebellious, uncooperative;
- Are interested in team games, pets, television, radio, movies;
- Have frequent arguments with those in authority; and
- Enjoy competitive games and games that involve problem-solving and thinking skills.

SUPPLEMENT IX

UPDATED BLEACH/WATER CONCENTRATION INFORMATION

(as referenced in The Good Health Handbook)

For 8.25% strength bleach concentration

Sanitize (100 PPM)	Disinfect (600 PPM)	Special Clean-up (5000 PPM)
CLEAN & SANITIZE AFTER EACH USE: • Children's mouthed toys • Food service areas, dishes	CLEAN & DISINFECT AFTER EACH USE: • Diaper changing surface	CLEAN & USE AS NEEDED FOR VOMIT AND DIARRHEA: • Not for other bodily fluids
SANITIZE DAILY OR MORE OFTEN WHEN SOILED: • Dishcloths, synthetic sponges • Common surfaces (other than in bathrooms), floors, mats, tables, countertops and hard surfaces, doorknobs, etc.	DISINFECT DAILY OR MORE OFTEN WHEN SOILED: • Bathroom areas	MIX SOLUTION WHEN NEEDED, THEN DISCARD • WEAR GLOVES AND MASK TO PROTECT YOURSELF
1/8 teaspoon bleach/pint of water	¾ teaspoon bleach/pint of water	2 tablespoons bleach/pint of water
1/4 teaspoon bleach/quart of water	1½ teaspoons bleach/quart of water	4 tablespoons bleach/quart of water
1 teaspoon bleach/gallon of water	2 tablespoons bleach/gallon of water	1 cup (8 oz.) bleach/gallon of water

And for 5.25% strength bleach concentration (if you can find it)**:**

Sanitize (100 PPM)	Disinfect (600 PPM)	Special Clean-up (5000 PPM)
CLEAN & SANITIZE AFTER EACH USE: • Children's mouthed toys • Food service areas, dishes	CLEAN & DISINFECT AFTER EACH USE: • Diaper changing surface	CLEAN & USE AS NEEDED FOR VOMIT AND DIARRHEA: • Not for other bodily fluids
SANITIZE DAILY OR MORE OFTEN WHEN SOILED: • Dishcloths, synthetic sponges • Common surfaces (other than in bathrooms), floors, mats, tables, countertops and hard surfaces, doorknobs, etc.	DISINFECT DAILY OR MORE OFTEN WHEN SOILED: • Bathroom areas	MIX SOLUTION WHEN NEEDED, THEN DISCARD • WEAR GLOVES AND MASK TO PROTECT YOURSELF
1/8 teaspoon bleach/pint of water	1¼ teaspoons bleach/pint of water	3 tablespoons bleach/pint of water
1/4 teaspoon bleach/quart of water	1 tablespoon bleach/quart of water	6 tablespoons bleach/quart of water
1 teaspoon bleach/gallon of water	¼ cup bleach/gallon of water	1 ½ cup bleach/gallon of water

SUPPLEMENT X

SAFE FOOD HANDLING RECOMMENDATIONS

1. **Hands** should be washed with soap and running after any contamination, such as: after using the bathroom, after changing diapers, after coughing or sneezing, after handling raw meat and after handling pets.
2. **Cooking temperatures** - beef roasts and steaks - 145°F; poultry - 165°F; ground beef and pork - 160°F. If a thermometer is not available, do not eat ground beef that is still pink inside. A **clean thermometer** should be used to make sure foods are cooked all the way through.
3. **Eggs** should be cooked until the yolk and white are firm. Don't use recipes in which eggs remain raw or only partially cooked.
4. **Fish** should be opaque and flake easily with a fork.
5. **Microwave ovens** - make sure there are no cold spots in food where bacteria can survive. For best results, cover food, stir and rotate for even cooking, and let stand for 2 minutes after cooking.
6. **Refrigerator temperature** - set no higher than 41°F. Check these temperatures occasionally by securing an appliance thermometer in the refrigerator where it is visible.
7. **Raw meat products, poultry, or fish** should be stored below other food in the refrigerator so that it can not drip into any food below.
8. **Refrigerate or freeze** perishables, prepared foods and leftovers within two hours or sooner. Don't pack the refrigerator; cool air must circulate to keep food safe.
9. **Thaw food** in the refrigerator, under cold running water or in the microwave. Marinate foods in the refrigerator.
10. **Leftovers** should be divided into small, shallow containers for quick cooling in the refrigerator.
11. **Reheat** sauces, soups and gravy to a boil and other leftovers to at least 165°F.
12. **Food** should come from approved sources; **no home-canned food**.
13. **Cutting boards (plastic or non-porous), dishes, utensils and counter tops** should be sanitized after preparing each food item. If possible, use a different cutting board for raw meat products.
14. **Paper towels** should be used for cleaning surfaces and drying hands.
15. **Raw meat, poultry, and seafood** should be separated from other foods in the grocery cart and refrigerator.
16. **Cooked food** should never be placed on a plate or surface which previously held raw meat, poultry or seafood.

REVISIONS TO REQUIREMENTS FOR FAMILY CHILD CARE HOMES AND LARGE CHILD CARE HOMES

Requirements reflect the Child Care Block Grant reauthorization criteria for the *Licensing Requirements for Family Child Care Homes and Large Child Care Homes.*

June 21, 2024	Governor approves proposed requirement revisions.
November 1, 2024	Effective date of revisions.

INDEX

Access to home
Licensing 14
Ages and Number of
Children 4
Large Homes 37
Swimming ..... *See* Water Safety
Animals and Household Pets 15
Assistant caregiver 5
Large Homes 38
Attendance 22
Background investigations 8
Bathrooms ..... See Toilet Facilities
Bleach Solution 84
Bottle-feeding 32
Carbon Monoxide Detector 36
Caregiver qualifications
Large Homes 37
Child Abuse
Hotline Number **6**
Reporting of Suspected 6
Supplement (What is Child Abuse?)67
Child Development
Supplement (Ages and Stages) 80–83
Chokeable, unsafe, and new foods. 32
Compliance Posting/Filing ..... See Records
Constructive Influence 6
CPR and first aid certification 11
Crib, port-a-crib, playpen, and play yard
Infant 28
Safety features 28
Death of Child, Notification Licensing 6
Diaper-changing 32
Disaster Preparedness 68
Discipline and behavior guidance .. 30
Supplement (Child Passenger Restraint System) 78
Doors 35
Driver qualifications 20
Emergency preparedness 17
Exits 35
Extension Cords 36
Fences 14
Large Homes 38
Pool 15
Fingerprints ..... See Background Investigations
Fire Drills ..... See Emergency Preparedness
Fire Extinguishers 36
First aid supplies 18
Flashlight 36
Food and Nutrition 34
Supplement (Safe Food Handling).. 85
Foster care 7
Guns ..... See Weapons
Handwashing 26
Hazards 6, 14
Heating Equipment 36
Home access
Parents 24
Ill Children 25–26
Immunizations 25
Children living in home 8
Inactive care 7
Indoor space 14
Infants, toddlers, and two-year-olds 32
Injury Report 74
Insurance
Coverage 24
Licensing notification 6
Parent notification 24
Large family child care homes 37
Law ..... See Oklahoma Child Care Facilities Licensing Act
License posting 7
Licensing Notification 6
Lighting and ventilation 14
Maintenance of premises 14
Mats 28
Meals ..... See Food and Nutrition
Medication 25
Mobile Homes 36
Nap time ..... See Rest time
Oklahoma Child Care Facilities Licensing Act 44
Oklahoma Professional Development Ladder ..... *See* Appendix FF
Other employment 7

INDEX

Outdoor play 14
Large home 38
Safety 14
Overnight care 5
Parents' Guide to Selecting Quality Child Care 24
Pets *See* Animals and Household Pets
Play Equipment 27
Supplement (Play Equipment - Recommended)..... 75–77
Policy 24
Pools
Ponds, pools, and hot tubs 15
Potty chairs 33
Professional development
CPR and first aid certification 11
General 11
Health and safety training 12
Large homes 38
Professional development requirements 11
Program 27
Qualifications of caregivers 7
Ratios ..... See Ages and Number of Children
Records- Caregiver 5
Records- Child 22
Records- Compliance Posting and File 22
References 5, 8
Responsibilities of caregivers 5
Rest Time
In Daily Program 27
Place to rest 28
Restricted Registry 3, 9, 10, 11
Screens 14
Sleep positioning 28
Smoke Detectors 35
Smoking ..... See Tobacco products
Stairways 35
Substitute Caregivers 5
Large Homes 38
Supervision 5
During outdoor play (Large Homes) 37
During water activities 15
Supervision of overnight care 5
While Transporting 21
Swimming ..... See Water Safety
Television, Video, Computer 27
Temperature 14
Tobacco products 14
Toilet facilities 14
Toilet learning 32
Tornado drills 19
Transportation 20–21
Supplement (Child Passenger Restraint System)..... 69
Tuberculosis testing 8
Vehicle requirements 20
Wading pools ..... See Water safety
Water safety 15
Water supply and testing 15
Weapons 14



OKLAHOMA
Human Services

Pub. No. 86-104 Revised 8/2024
This publication is authorized by Oklahoma Human Services Director Dr. Deborah Shropshire and
printed in accordance with state and federal regulations at a cost of $7,963.88 for 6,533 copies. Copies have been deposited
with the Publications Clearinghouse of the Oklahoma Department of Libraries. Members of the public may obtain copies by
calling 1-877-283-4113 (toll free) or by downloading a copy at https://oklahoma.gov/okdhs/library.html.